

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MARINE BULKHEADING, INC.,

Plaintiff,

-against-

JAT CONSTRUCTION GROUP INC., and
402 AVENUE T LLC, and "JOHN DOE" said
name(s) being fictitious and unknown to plaintiff,
such person(s) and/or entity(ies) being intended to
be lienors, mortgagees, judgment creditors, tenants,
occupants, or other parties and/or entity(ies) with an
interest in the real property located at 402 Avenue
T a/k/a 2044 East 2nd Street, Brooklyn, NY 11223,
City and State of New York, County of Kings, Block
7104, Lot 458,

Defendants.

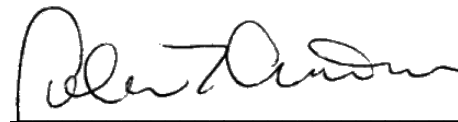
Index No. /2026

Date Purchased:

Plaintiff designates
Kings County as place of trialBasis of Venue is location of the
subject real properties**SUMMONS**Plaintiff has its principle place of
business is located at:
3512 Bay Ct., Seaford, NY

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the amended complaint in this action
and to serve a copy of your answer, or, if the amended complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the
service of this summons, exclusive of the day of service (or within 30 days after the service is
complete if this summons is not personally delivered to you within the State of New York);
and in case of your failure to appear or answer, judgment will be taken against you by default
for the relief demanded in the amended complaint.

Dated: Commack, New York
January 5, 2026

John N. Cuomo, Esq.
Attorney for Plaintiff
Marine Bulkheading, Inc.
11 Fern Dr.
Commack, NY 11725
(631) 403-0515

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MARINE BULKHEADING, INC.,

Plaintiff,

-against-

JAT CONSTRUCTION GROUP INC., and
402 AVENUE T LLC, and "JOHN DOE" said name(s) being
fictitious and unknown to plaintiff, such person(s) and/or
entity(ies) being intended to be lienors, mortgagees,
judgment creditors, tenants, occupants, or other parties
and/or entity(ies) with an interest in the real property located
at 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn, NY
11223, City and State of New York, County of Kings, Block
7104, Lot 458,

Defendants.

Index No. /2025

**VERIFIED
COMPLAINT**

Plaintiff, MARINE BULKHEADING, INC., by its attorney, JOHN N. CUOMO,
complaining of the Defendants alleges as follows:

1. That at all times relevant herein, Plaintiff, MARINE BULKHEADING, INC.
was a corporation duly organized and existing by virtue of the laws of the State of New York.

2. That upon information and belief, at all times relevant herein, Defendant, JAT
CONSTRUCTION GROUP INC. ("JAT"), was a domestic corporation organized and existing
under the laws of the state of New York, with its principal place of business in the State of
New York.

3. At all times relevant herein, JAT was and is doing business in the State of New
York.

4. That at all times relevant herein, defendant 402 AVENUE T LLC was and is

a domestic limited liability company duly organized and existing by virtue of the laws of the State of New York.

5. That at all times relevant herein, 402 AVENUE T LLC was the fee owner of a certain parcel of real property (including all buildings and items situate thereon) located in Kings County New York known as Block 7104, Lot 458 on the tax map of Kings County, City and State of New York. Said real property was also known as and by the street address as 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn, NY 11223 ("Property", "Real Property" and/or "Project Site").

6. Jurisdiction and venue are proper (CPLR § 507) in the County of Kings as Kings County is the location of the subject property.

7. JAT was the general contractor for a construction project taking place upon the Real Property, with authority to hire subcontractors and consent of the owner 402 AVENUE T LLC and all other relevant parties.

8. Defendant "JOHN DOE", said name(s) being fictitious and unknown to plaintiff, such person(s) and/or entity(ies) being intended to be that person(s) and/or entity(ies) with an interest in the real property located at 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn, NY 11223, City and State of New York, County of Kings, Block 7104, Lot 458.

AS AND FOR FIRST CAUSE OF ACTION

9. That upon information and belief, at all times relevant herein defendant, 402 AVENUE T LLC was and still is the owner in fee of the Real Property (including all buildings and items situate thereon) known as Block 7104, Lot 458 on the tax map of Kings County, City and State of New York, said real property was also known as and by the street address

as 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn, New York 11223. The full legal description (metes and bounds) of the Property is attached hereto as **EXHIBIT "A"**.

10. The mechanic's lien and affidavit of service were filed within the times prescribed by the New York State Lien Law (within one month of the last day of work upon the project site by plaintiff).

11. That on or about October 1, 2025, JAT, with the knowledge, consent and/or authority of the 402 AVENUE T LLC, entered into a written and/or oral agreement with plaintiff to perform certain work, labor and services consisting of the supply and installation of timber piles, concrete, perform excavation and supply labor and other related work and materials in connection with a construction and improvement project at the Property.

12. That from on or about October 1, 2025 and until on or about December 4, 2025, the plaintiff duly performed all of the work, labor and services on its part to be performed and furnished all of the materials on its part to be furnished and otherwise performed all of the terms, covenants and conditions of the agreement on its part to be performed.

13. That the agreed price and fair and reasonable value of the labor and services performed and the materials furnished was \$854,700.00, the remaining and unpaid portion thereof is \$361,080.00; leaving a balance due and owing of \$361,080.00, no part of which has been paid, although payment has been duly demanded.

14. That all of the labor and services performed and all of the materials furnished by the plaintiff were, in fact, delivered to and incorporated into the aforesaid real property.

15. That on or about December 16, 2025 the plaintiff duly filed in the office of the Clerk of the County of Kings, a Notice of Mechanic's Lien along with an Affidavit of Service thereof, all documents containing all required information and filed with the County Clerk within

the times prescribed by the New York State Lien Law, **EXHIBIT "B"**.

16. That the plaintiff's Mechanic's Lien has not been paid, cancelled or discharged and remains valid and in force.

17. That by reason of the foregoing, the plaintiff is entitled to judgment upon its Mechanic's Lien.

AS AND FOR A SECOND CAUSE OF ACTION

18. Plaintiff repeats, reiterates and realleges each and every allegation contained in those paragraphs marked herein as "1" through "17", with the same force and effect as if each were fully set forth herein at length.

19. That beginning in or about October 2025 and regularly and periodically thereafter, the plaintiff duly rendered statements of account to each of the defendants herein showing the amount due and owing to the plaintiff.

20. That the said statements of account were duly received by the defendants herein without challenge, complaint, offset rejection or objection within a reasonable time. That the aforesaid statements of account indicated a balance due and owing in the sum of \$361,080.00

21. That by reason of the foregoing, the plaintiff is entitled to judgment against the defendants herein on the basis of an account stated in the sum of \$361,080.00 with interest thereon from December 4, 2025.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in those paragraphs marked herein as "1" through "21", with the same force and effect as if each were fully set forth herein at length.

23. That by reason of the foregoing, the plaintiff is entitled to judgment against JAT herein, on the basis of a breach of contract in the sum of \$361,080.00, with interest thereon from December 4, 2025.

AS AND FOR A FOURTH CAUSE OF ACTION

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in those paragraphs marked herein as "1" through "23", with the same force and effect as if each were fully set forth herein at length.

25. In the alternative, and in the event no enforceable contract is found, plaintiff performed labor and furnished materials at the request and with the consent of defendants at the Property located at 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn, NY 11223.

26. JAT operated with the full knowledge, consent, permission, authorization and authority of 402 AVENUE T LLC for all matters regarding the construction project located at 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn, NY 11223. Defendants accepted and benefited from plaintiff's work.

27. Plaintiff supplied work having a reasonable value of not less than \$361,080.00.

28. Despite due demand for payment of same, both JAT and 402 AVENUE T LLC have failed to make payment and have left a balance of \$361,080.00 due and owing to plaintiff.

29. That by reason of the foregoing, the plaintiff is entitled to judgment against the defendants herein, jointly and severally, on the basis of Quantum Meruit in the sum of \$361,080.00, with interest thereon from December 4, 2025.

AS AND FOR A FIFTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in those paragraphs marked herein as "1" through "29", with the same force and effect as if each were fully set forth herein at length.

31. That at all times relevant herein, JAT was the agent of and for, 402 AVENUE T LLC being the owners of the real property (including all buildings and items situate thereon) located at 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn, NY 11223.

32. Plaintiff supplied the materials, services and labor herein having a value of not less than \$361,080.00 at the insistence, request and /or consent of JAT and 402 AVENUE T LLC.

33. Despite due demand for payment of same, JAT and 402 AVENUE T LLC have failed to make payment and have left a balance of \$361,080.00 due and owing to plaintiff.

34. That by reason of the foregoing, the defendants, JAT and 402 AVENUE T LLC have been unjustly enriched and as a result plaintiff is entitled to judgment against the defendants herein, jointly and severally, on the basis that each have been unjustly enriched in the sum of \$361,080.00, and that this Court grant interest thereon from December 4, 2025.

AS AND FOR A SIXTH CAUSE OF ACTION

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in those paragraphs marked herein as "1" through "34", with the same force and effect as if each were fully set forth herein at length.

36. That on or about November 23, 2025, defendants JAT delivered to plaintiff

check 5090, in the amount of Two Hundred Thousand Dollars (\$200,000.00), drawn on JAT's account at Coastal Community Bank, as partial payment for the \$361,080.00 of work performed by plaintiff at the Property.

37. At the time said check was issued, JAT knew that its account contained insufficient funds to honor the check, or that payment would be refused.

38. That on or about December 4, 2025, and then again on or about December 10, 2025, plaintiff presented said check for payment to the bank upon which it was drawn, on both occasions the check was returned unpaid and marked "Return Reason A Not Sufficient Funds". (See annexed "**Exhibit C**").

39. Defendant JAT issued said check to plaintiff with the intent to deceive plaintiff and to induce plaintiff to continue performing work, and to delay plaintiff from taking legal action to recover monies due and owing.

40. Plaintiff reasonably relied upon JAT's issuance of said check and continued to perform to its detriment.

41. That by reason of the foregoing and as a direct and proximate result of JAT's fraudulent conduct, plaintiff sustained damages separate and apart from breach of contract and other claims raised herein, including loss of use of funds, additional uncompensated work performed in reliance upon the dishonored check, and delay in enforcing plaintiff's legal rights, these damages in an amount to be determined at trial.

WHEREFORE, plaintiff demands judgment:

- (a) Adjudging plaintiff to have a valid and subsisting Mechanic's Lien upon the Property;
- (b) Directing foreclosure and sale of the Property pursuant to the Lien Law;
- (c) Awarding plaintiff judgment against defendants, jointly and severally where

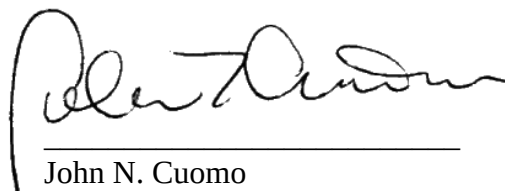
appropriate, in the sum of \$361,080.00, with interest from December 4, 2025;

(d) Awarding plaintiff compensatory damages on the Sixth Cause of Action;

(e) Awarding costs and disbursements of this action; and

(f) Granting such other and further relief as the Court deems just and proper.

Dated: Commack, New York
January 5, 2026

A handwritten signature in black ink, appearing to read "John N. Cuomo", is written over a horizontal line.

John N. Cuomo
Attorney for Plaintiff
Marine Bulkheading, Inc.
11 Fern Drive
Commack, New York 11725
631-403-0515

ATTORNEY VERIFICATION

STATE OF NEW YORK)

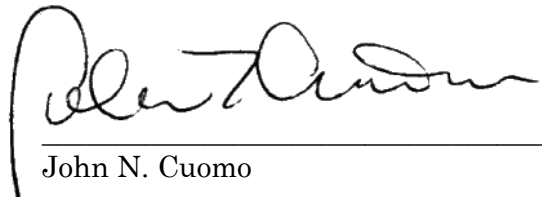
: ss.:

COUNTY OF SUFFOLK)

I, the undersigned, an attorney admitted to practice in the Courts of New York State, the attorney of record for the plaintiff in the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe them to be true.

The reason this verification is made by me and not by the plaintiff is because plaintiff does not maintain an office within the County where I maintain my office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: Books and records contained in affiant's file and conversations had with the plaintiff.

Dated: Commack, New York
January 5, 2026



John N. Cuomo

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARINE BULKHEADING, INC.,

Plaintiffs,

- against -

JAT CONSTRUCTION GROUP INC., and
402 AVENUE T LLC, and "JOHN DOE" said name(s)
being fictitious and unknown to plaintiff, such person(s)
and/or entity(ies) being intended to be lienors, mortgagees,
judgment creditors, tenants, occupants, or other parties
and/or entity(ies) with an interest in the real property located
at 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn,
NY 11223, City and State of New York, County of Kings,
Block 7104, Lot 458,

Defendants.

-----X

MOTION BY: Rosen Law LLC
Attorneys for Defendant 402 Avenue T LLC
216 Lakeville Road
Great Neck, New York 11020
(516) 437-3400

DATE, TIME & PLACE: April 6, 2026 at 9:30 A.M.
IAS Part to be assigned
Supreme Court of the State of New York
County of Kings,
360 Adams Street,
Brooklyn, New York 11201

SUPPORTING PAPERS: Memorandum of Law and Affirmation of Gary Rosen, Esq. in
Support of Defendant 402 Avenue T LLC's Motion to Dismiss
dated March 20, 2026 and the exhibits thereto.

RELIEF SOUGHT: **An Order pursuant to CPLR 3211(a)(1), CPLR 3211(a)(7),
CPLR 3211(c), and CPLR 6514:**
**(i) dismissing the Verified Complaint in its entirety insofar as
asserted against Defendant 402 Avenue T LLC;**
**(ii) alternatively, dismissing the Second, Fourth, and Fifth
Causes of Action insofar as asserted against Defendant 402**

Index No. 500420/2026

NOTICE OF MOTION

Motion Seq. No. 001

Avenue T LLC, together with all demands for any personal money judgment against Defendant 402 Avenue T LLC;

(iii) upon dismissal of the First Cause of Action to foreclose the mechanic's lien, directing the Kings County Clerk to cancel the Notice of Pendency filed against the subject property;

(iv) severing the action and amending the caption to delete Defendant 402 Avenue T LLC, if the Complaint is dismissed in its entirety as against that Defendant; and

(v) granting such other, further, and different relief as the Court deems just and proper.

ANSWERING PAPERS: Pursuant to CPLR 2214(b), all answering/reply papers must be filed at least seven (7) days prior to the return date of this motion.

Dated: March 20, 2026

Respectfully submitted,

Gary Rosen, Esq.
Rosen Law LLC
Attorneys for Defendant 402 Avenue T LLC
216 Lakeville Road
Great Neck, New York 11020
Tel. (516) 437-3400

To:
John N. Cuomo, Esq.
Attorney for Plaintiff
11 Fern Drive
Commack, New York 11725

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARINE BULKHEADING, INC.,

Index No. 500420/2026

Plaintiffs,

- against -

JAT CONSTRUCTION GROUP INC., and
402 AVENUE T LLC, and "JOHN DOE" said name(s)
being fictitious and unknown to plaintiff, such person(s)
and/or entity(ies) being intended to be lienors, mortgagees,
judgment creditors, tenants, occupants, or other parties
and/or entity(ies) with an interest in the real property located
at 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn,
NY 11223, City and State of New York, County of Kings,
Block 7104, Lot 458,

Defendants.

-----X

**MEMORANDUM OF LAW IN SUPPORT OF DEFENDANT 402 AVENUE T
LLC'S MOTION TO DISMISS THE VERIFIED COMPLAINT PURSUANT TO
CPLR 3211(a)(1), CPLR 3211(a)(7), AND CPLR 3211(c), AND TO CANCEL THE
NOTICE OF PENDENCY**

**Gary Rosen, Esq.
Rosen Law LLC
Attorneys for Defendant 402 Avenue T LLC
216 Lakeville Road
Great Neck, New York 11020
(516) 437-3400**

TABLE OF CONTENTS

	<u>Page(s)</u>
TABLE OF CONTENTS	I
TABLE OF AUTHORITIES	II
PRELIMINARY STATEMENT	1
STATEMENT OF RELEVANT FACTS.....	4
STANDARD OF REVIEW FOR A MOTION TO DISMISS	6
ARGUMENT	9
THE SECOND, FOURTH, AND FIFTH CAUSES OF ACTION MUST BE DISMISSED, THE THIRD AND SIXTH CAUSES OF ACTION CONFIRM THAT RESULT, AND NO PERSONAL MONEY JUDGMENT MAY BE ENTERED AGAINST DEFENDANT 402 AVENUE T LLC.....	9
C. THE FOURTH CAUSE OF ACTION FOR QUANTUM MERUIT FAILS BECAUSE PLAINTIFF PERFORMED ITS WORK FOR DEFENDANT JAT CONSTRUCTION GROUP INC., NOT FOR DEFENDANT 402 AVENUE T LLC.	13
D. THE FIFTH CAUSE OF ACTION FOR UNJUST ENRICHMENT FAILS FOR THE SAME REASON, AND PLAINTIFF'S VERIFIED COMPLAINT'S CONCLUSORY AGENCY LABEL DOES NOT SAVE IT.	15
E. EVEN IF PLAINTIFF'S MECHANIC'S LIEN CLAIM WERE NOT DISMISSED, NO PERSONAL MONEY JUDGMENT MAY BE ENTERED AGAINST DEFENDANT 402 AVENUE T LLC.....	15
THE FIRST CAUSE OF ACTION TO FORECLOSE THE MECHANIC'S LIEN SHOULD BE DISMISSED BECAUSE NO LIEN FUND EXISTED WHEN THE LIEN WAS FILED	16
UPON DISMISSAL OF THE LIEN-FORECLOSURE CLAIM, THE NOTICE OF PENDENCY MUST BE CANCELED AND THE CAPTION AMENDED	22
CONCLUSION	23
WORD COUNT CERTIFICATION.....	25

TABLE OF AUTHORITIES

<u>Cases</u>	<u>Page(s)</u>
<u>Albert J. Bunce, Ltd. v Fahey,</u> 73 A.D.2d 632 (2d Dep’t 1979).....	16, 17
<u>Brown Bros. Elec. Contrs., Inc. v Beam Constr. Corp.,</u> 41 N.Y.2d 397, 399-402 (1977).....	9
<u>Bryan’s Quality Plus, LLC v Dorime,</u> 112 A.D.3d 870, 870-871 (2d Dep’t 2013).....	19
<u>C.C.C. Renovations, Inc. v Victoria Towers Dev. Corp.,</u> 168 A.D.3d 664, 665-666 (2d Dep’t 2019).....	18
<u>Cortlandt St. Recovery Corp. v. Bonderman,</u> 31 NY3d 30 (2018).....	7
<u>Ebert v Van-Mar Developers, Inc.,</u> 111 A.D.2d 495, 496-497 (3d Dep’t 1985).....	20
<u>GCDM Ironworks v GJF Constr. Corp.,</u> 292 A.D.2d 495, 496-497 (2d Dep’t 2002).....	18
<u>Goshen v. Mut. Life Ins. Co. of N.Y.,</u> 98 N.Y.2d 314 (2002).....	6
<u>JLJ Recycling Contrs. Corp. v Town of Babylon,</u> 302 A.D.2d 430, 431 (2d Dep’t 2003).....	13
<u>Leon v. Martinez,</u> 84 N.Y.2d 83 (1994).....	6
<u>M. Paladino, Inc. v J. Lucchese & Son Contr. Corp.,</u> 247 A.D.2d 515, 515-516 (2d Dep’t 1998).....	10, 12, 15
<u>Peri Formwork Sys., Inc. v Lumbermens Mut. Cas. Co.,</u> 112 A.D.3d 171, 176-177 (2d Dep’t 2013).....	18
<u>Perma Pave Contracting Corp. v Paerdegat Boat & Racquet Club, Inc.,</u> 156 A.D.2d 550, 551 (2d Dep’t 1989).....	13, 15, 19, 20
<u>Sears Ready Mix, Ltd. v Lighthouse Mar., Inc.,</u> 127 A.D.3d 845, 846 (2d Dep’t 2015).....	13, 15

Simplex Grinnell v Ultimate Realty, LLC,
38 A.D.3d 600, 600-601 (2d Dep’t 2007)..... 10, 12

TV Tech Mgrs., Inc. v Cohen,
227 A.D.3d 838, 841 (2d Dep’t 2024)..... 10, 12, 13

Vertical Progression, Inc. v Canyon Johnson Urban Funds,
126 A.D.3d 784, 786 (2d Dep’t 2015)..... 7, 8

PRELIMINARY STATEMENT

This action arises from an ordinary subcontractor nonpayment dispute, but Plaintiff Marine Bulkheading, Inc. has attempted to recast it as though the owner of the subject property, Defendant 402 Avenue T LLC somehow became a direct obligor for a subcontract it never made.

The Verified Complaint seeks to foreclose a mechanic's lien against the property located at 402 Avenue T, Brooklyn, New York (the "Property"), to recover on an account stated against both defendants, and to impose quasi-contract liability upon the owner, Defendant 402 Avenue T LLC, even though the complaint's own narrative identifies Defendant JAT Construction Group Inc. as the general contractor that hired plaintiff, received plaintiff's invoices, and tendered the dishonored check of which plaintiff complains.

The record submitted on this motion leaves no room for artful ambiguity. Plaintiff's notice of mechanic's lien states that plaintiff was employed by Defendant JAT Construction Group Inc. and that Plaintiff's contract was made with Defendant JAT Construction Group Inc.

Plaintiff's September 25, 2025 invoice is addressed to Defendant JAT Construction Group Inc. and Plaintiff's September 25, 2025 unconditional waiver identifies Defendant JAT Construction Group Inc. as the maker of the payment check.

The Verified Complaint's Third and Sixth Causes of Action are asserted only against Defendant JAT Construction Group Inc., thereby confirming that plaintiff itself understood Defendant JAT Construction Group Inc. to be the contracting and paying party.

Against that documentary background, the personal claims asserted against Defendant 402 Avenue T LLC fail as a matter of settled New York law.

An account stated cannot create liability where none otherwise exists. A subcontractor may not recover against an *owner* for breach of contract *absent privity*.

A property owner that has hired a general contractor does not become liable to the subcontractor in *quantum meruit* or *unjust enrichment* unless the owner expressly undertook to pay the subcontractor directly.

None of those indispensable facts is pleaded by Plaintiff here, and the project documents affirmatively negate them.

It is respectfully submitted that Plaintiff's Mechanic's Lien foreclosure claim also fails since a subcontractor's lien is derivative and cannot attach beyond the sum earned and unpaid on the prime contract when the mechanic's lien is filed.

Here, Defendant JAT Construction Group Inc.'s president John Longardo has sworn that Defendant JAT Construction Group Inc. was *paid in full*, and indeed overpaid, before Plaintiff filed its mechanic's lien, that no money was due from Defendant 402 Avenue T LLC to Defendant JAT Construction Group Inc. on December 16, 2025, and that Defendant JAT Construction Group Inc. waives any present payment claim against Defendant 402 Avenue T LLC.

Unlike the cases in which owners failed to submit competent payment proof, Defendant 402 Avenue T LLC has supplied the actual checks, the wire record, the supporting requisition materials, and the contractor's sworn explanation of why no lien fund existed.

Once those principles are applied to Plaintiff's Verified Complaint as it is actually pleaded, every cause of action asserted against Defendant 402 Avenue T LLC falls away.

The Third and Sixth Causes of Action are not even directed to Defendant 402 Avenue T LLC, but rather only against Defendant JAT Construction Group Inc. only, as mentioned above.

Thus, it is respectfully submitted that Plaintiff's First, Second, Fourth, and Fifth Causes of Action fail on their merits against Defendant 402 Avenue T LLC.

The notice of pendency, being merely ancillary to Plaintiff's mechanic's lien foreclosure claim, must therefore be canceled.

Plaintiff will likely attempt to resist dismissal by arguing that this motion raises factual issues, that discovery is needed, or that owner involvement in the project suffices to infer a direct obligation but it is respectfully submitted that none of those anticipated arguments withstands scrutiny.

The motion does not ask the Court to weigh competing testimonial accounts. It asks the Court to enforce the legal consequences of the governing documents and of plaintiff's own pleading choices.

Plaintiff has pleaded a subcontract with Defendant JAT Construction Group Inc., not a contract with Defendant 402 Avenue T LLC.

The project documents confirm the same and Plaintiff's Mechanic's Lien claim is viable only if money remained due from owner to contractor when Plaintiff's Mechanic's Lien was filed. Where the documentary record defeats those predicates, CPLR 3211 is the proper mechanism to terminate the claims now, before the parties and the Court are *burdened* with needless discovery on theories the law *does not recognize*.

STATEMENT OF RELEVANT FACTS

Plaintiff alleges that Defendant 402 Avenue T LLC owned the Property and that Defendant JAT Construction Group Inc. acted as general contractor. (Complaint ¶¶ 5, 7).

Plaintiff further alleges that, on or about October 1, 2025, Defendant JAT Construction Group Inc., with Defendant 402 Avenue T LLC's knowledge and consent, entered into a written and/or oral agreement with Plaintiff for foundation, piling, excavation, and related work at the Property. (Complaint ¶ 11). *Plaintiff does not allege that Defendant 402 Avenue T LLC itself entered into any contract with Plaintiff.*

Plaintiff's notice of mechanic's lien, filed December 16, 2025, makes the same admission even more explicitly since its lien states that Plaintiff was employed by "JAT CONSTRUCTION GROUP," that the contract was made with "JAT CONSTRUCTION GROUP," and that the amount allegedly unpaid under Plaintiff's own subcontract was \$361,080.00.

Plaintiff's own business records follow the same pattern, as Plaintiff's September 25, 2025 invoice seeks payment from Defendant JAT Construction Group Inc., not Defendant 402 Avenue T LLC.

Plaintiff's September 25, 2025 unconditional waiver and release identifies Defendant JAT Construction Group Inc. as the maker of the check in the amount of \$121,500.00 and limits the waiver to work through September 30, 2025.

Whatever the waiver's temporal reach, it is a further admission that Plaintiff was looking to Defendant JAT Construction Group Inc. for payment and was receiving progress payments from Defendant JAT Construction Group Inc.

The owner-contractor documents are equally clear since the prime agreement is between Defendant 402 Avenue T LLC and Defendant JAT Construction Group Inc. alone.

The Declaration of John Longardo (**Exhibit “1”** hereto) states that Defendant 402 Avenue T LLC terminated Defendant JAT Construction Group Inc. effective December 5, 2025 because of Defendant JAT Construction Group Inc.’s performance failures and that, before Plaintiff’s mechanic’s lien was filed, Defendant 402 Avenue T LLC had paid Defendant JAT Construction Group Inc. a total of \$337,290.00 by two September 4, 2025 checks totaling \$277,290.00 and a November 3, 2025 wire of \$60,000.00.

Mr. Longardo further states that a substantial portion of those monies represented mobilization and advance charges, that Defendant JAT Construction Group Inc. was paid in full and in fact overpaid after reconciliation of the work actually performed, that no monies were due or owing from Defendant 402 Avenue T LLC to Defendant JAT Construction Group Inc. when Plaintiff filed its mechanic’s lien on December 16, 2025, and that Defendant JAT Construction Group Inc. waives any present payment claim against Defendant 402 Avenue T LLC arising out of the project.

Those sworn statements are not unsupported conclusions since they are accompanied by the payment records, the requisition materials, and the termination letter.

Finally, Plaintiff’s Verified Complaint itself acknowledges where Plaintiff located the debt.

The Third Cause of Action pleads breach of contract only against Defendant JAT Construction Group Inc.

The Sixth Cause of Action alleges that Defendant JAT Construction Group Inc. tendered Plaintiff a \$200,000 check drawn on Defendant JAT Construction Group Inc.'s own bank account and that the check was returned for insufficient funds. (Complaint ¶¶ 35-41).

Those allegations are fundamentally inconsistent with any theory that Defendant 402 Avenue T LLC separately agreed to become Plaintiff's debtor.

STANDARD OF REVIEW FOR A MOTION TO DISMISS

A motion to dismiss pursuant to CPLR 3211(a)(1) should be granted where the documentary evidence submitted is unambiguous, authentic, and of undisputed import, and where it resolves all factual issues as a matter of law and conclusively disposes of the plaintiff's claim. Leon v. Martinez, 84 N.Y.2d 83 (1994).

Documentary evidence need not merely contradict the pleading; rather, it must utterly refute the material allegations and conclusively establish a defense as a matter of law. Leon, supra; Goshen v. Mut. Life Ins. Co. of N.Y., 98 N.Y.2d 314 (2002).

A motion pursuant to CPLR 3211(a)(7), by contrast, tests the legal sufficiency of the pleading. Although the Court must afford the complaint a liberal construction, accept the facts alleged as true, and accord plaintiff the benefit of every favorable inference, bare legal conclusions, factual claims flatly contradicted by documentary evidence, and allegations that fail to fit within any cognizable legal theory are not entitled to such deference. Leon, supra.

On a motion to dismiss for failure to state a cause of action, the Court of Appeals has instructed that "When reviewing a defendant's motion to dismiss a complaint for

failure to state a cause of action, a court must give the complaint a liberal construction, accept the allegations as true and provide plaintiffs with the benefit of every favorable inference." Cortlandt St. Recovery Corp. v. Bonderman, 31 NY3d 30 (2018).

At the same time, "Whether a plaintiff can ultimately establish its allegations is not part of the calculus in determining a motion to dismiss" (id. at 38). The question on this motion is therefore whether Plaintiff has pleaded legally cognizable claims, not whether Plaintiff can later prove his allegations.

Even applying the liberal CPLR 3211(a)(7) standard, dismissal is warranted here because the Complaint does not plead facts that fit within any cognizable legal theory and instead relies on conclusory characterizations and labels that a court is not required to accept.

The Court of Appeals has emphasized that, although a motion to dismiss requires the Court to give the pleading a liberal construction and afford the plaintiff every favorable inference, a complaint must still allege facts, and not merely conclusions, and the court is not required to accept bare legal conclusions or conclusory allegations as true.

Under CPLR 3211(a)(1), dismissal is warranted where the documentary evidence utterly refutes the plaintiff's factual allegations and conclusively establishes a defense as a matter of law. Vertical Progression, Inc. v Canyon Johnson Urban Funds, 126 A.D.3d 784, 786 (2d Dep't 2015).

Under CPLR 3211(a)(7), the Court affords the complaint a liberal construction and accepts pleaded facts as true, but where evidentiary material is submitted on the motion and the motion is not converted, the inquiry becomes whether the plaintiff actually has a cause of action at all, not merely whether the pleading recites one in

formulaic terms. Id. at 786-787. Dismissal remains proper where the submitted materials show that a fact claimed by the pleader is not a fact at all or that no significant dispute exists regarding it. Id.

Thus, where the pleading's own allegations, read together with the governing documents upon which the claims depend, establish that no viable cause of action lies against the moving defendant, dismissal is not only appropriate but required.

These settled standards are particularly apt here since Plaintiff attempts to transform a conventional owner-general contractor-subcontractor project into a direct owner-liability case.

However, Plaintiff's Verified Complaint itself, the prime contract, the subcontract-related payment documents, the lien waiver, and the sworn declaration submitted herewith establish the opposite, specifically, that plaintiff contracted with Defendant JAT Construction Group Inc., not with Defendant 402 Avenue T LLC; plaintiff's payment rights ran against Defendant JAT Construction Group Inc.; and plaintiff's mechanic's lien rights were necessarily limited to whatever lien fund, if any, remained due and owing from owner to contractor at the time of filing.

Where the governing documents define the parties' relationships and negate the duty plaintiff seeks to impose, CPLR 3211 provides the proper and efficient vehicle for dismissal at the pleading stage.

For the foregoing reasons, this Court should grant Defendant 402 Avenue T LLC's motion to dismiss.

ARGUMENT**POINT I****THE SECOND, FOURTH, AND FIFTH CAUSES OF ACTION MUST BE DISMISSED, THE THIRD AND SIXTH CAUSES OF ACTION CONFIRM THAT RESULT, AND NO PERSONAL MONEY JUDGMENT MAY BE ENTERED AGAINST DEFENDANT 402 AVENUE T LLC**

A. The Third and Sixth Causes of Action are not pleaded against Defendant 402 Avenue T LLC and instead confirm that Defendant JAT Construction Group Inc. was the only alleged contracting and paying party.

As a threshold matter, the complaint itself confines the Third and Sixth Causes of Action to Defendant JAT Construction Group Inc.

The Third Cause of Action seeks judgment against Defendant JAT Construction Group Inc. “on the basis of a breach of contract.” The Sixth Cause of Action alleges that Defendant JAT Construction Group Inc. tendered a \$200,000 check drawn on Defendant JAT Construction Group Inc.’s own account, that the check was dishonored, and that Defendant JAT Construction Group Inc. thereby committed a distinct wrong.

Those causes of action therefore require no separate dismissal as against Defendant 402 Avenue T LLC as they are not pleaded against Defendant 402 Avenue T LLC in the first place.

More importantly, they are plaintiff’s own admission that Defendant JAT Construction Group Inc., not Defendant 402 Avenue T LLC, was the entity with whom plaintiff contracted and from whom plaintiff expected payment.

Nor do the exceptional cases involving direct owner-subcontractor dealings assist plaintiff here.

In Brown Bros. Elec. Contrs., Inc. v Beam Constr. Corp., 41 N.Y.2d 397, 399-402 (1977), the owner communicated directly with the subcontractor about payment, placed

the subcontractor's name on checks, effectively took over performance, and wrote that it would make "payment of the balance."

On the other hand, in this case, nothing of that character is alleged here by Plaintiff since there is no promise by Defendant 402 Avenue T LLC to pay Plaintiff, no joint-check arrangement with Plaintiff, no direct billing to Defendant 402 Avenue T LLC, and no objective manifestation that Defendant 402 Avenue T LLC intended to assume Defendant JAT Construction Group Inc.'s payment obligations.

B. The Second Cause of Action for account stated fails as a matter of law.

An account stated presupposes prior transactions between the parties and some preexisting indebtedness. It may confirm an obligation; it cannot create one where none otherwise exists. TV Tech Mgrs., Inc. v Cohen, 227 A.D.3d 838, 841 (2d Dep't 2024).

That principle is especially important in construction cases, where a subcontractor may be tempted to re-label an unpaid subcontract balance as though it were also the owner's separate debt.

The Second Department applied that rule in M. Paladino, Inc. v J. Lucchese & Son Contr. Corp., 247 A.D.2d 515, 515-516 (2d Dep't 1998). There, a subcontractor sued an owner for breach of contract, quantum meruit, and account stated. The Court *dismissed* the account-stated claim because the owner had no contractual relationship with the subcontractor and because invoices sent to the owner merely to solicit assistance in obtaining payment did not create a new indebtedness.

Simplex Grinnell v Ultimate Realty, LLC, 38 A.D.3d 600, 600-601 (2d Dep't 2007) is to the same effect, as that Court held that an account-stated cause of action could not be maintained against a defendant where the proof showed that another entity had

agreed to pay the invoices and had in fact made the partial payment. The absence of any preexisting indebtedness between the plaintiff and the defendant was fatal.

Plaintiff's account stated claim against Defendant 402 Avenue T LLC is legally defective for a more basic reason: an account stated does not create liability where none otherwise exists. It merely recognizes and fixes the amount of an indebtedness arising from prior transactions between the parties. Thus, where there is no contractual or debtor-creditor relationship between the plaintiff and the defendant, an account stated claim necessarily fails.

Here, Plaintiff's own Verified Complaint pleads that its agreement was with Defendant JAT Construction Group Inc. and the project documents establish the same thing.

There is no allegation of any contract between Plaintiff and Defendant 402 Avenue T LLC, no allegation that Defendant 402 Avenue T LLC ever agreed to be billed directly by Plaintiff, and no allegation of any express undertaking by the owner, Defendant 402 Avenue T LLC, to assume Defendant JAT Construction Group Inc.'s payment obligations to Plaintiff.

In the absence of such an underlying obligation, Plaintiff cannot manufacture liability by sending invoices up the chain and then asserting that silence constituted assent.

Plaintiff may argue that retention of invoices without objection can support an account stated but that principle is beside the point. Silence may, in some circumstances, support an inference that a recipient assented to the correctness of an account but it

presupposes a *preexisting debt* or at least a *relationship* in which the recipient could fairly be understood to *owe* the account rendered.

It does not permit a claimant to leap over the general contractor and impose liability on the owner merely by mailing invoices to it. The doctrine cannot be used offensively to create a debtor-creditor relationship where the parties' governing documents show that none existed.

That reasoning governs here since Plaintiff alleges, in conclusory fashion, that it rendered statements of account to "each of the defendants." (Complaint ¶ 19).

However, Plaintiff's own invoice was addressed to Defendant JAT Construction Group Inc., not to Defendant 402 Avenue T LLC and even if copies of invoices or demands were later sent to Defendant 402 Avenue T LLC, such correspondence could not create an account stated in the absence of an underlying debt running from Defendant 402 Avenue T LLC to Plaintiff.

TV Tech, M. Paladino, and Simplex each hold that the law will not permit such bootstrapping and those cases are useful here not simply because they state the rule, but because they expose the *flaw* in Plaintiff's theory.

Plaintiff does not allege that Defendant 402 Avenue T LLC requested that plaintiff render bills directly to it, promised to review and pay them as its own, or otherwise behaved in a manner that could objectively be understood as assuming Defendant JAT Construction Group Inc's debt.

To the contrary, every relevant document confirms the standard project structure: owner to general contractor, general contractor to subcontractor. In that setting, an account stated claim against the owner is not merely weak but it is legally *unavailable*.

The Second Cause of Action must therefore be dismissed insofar as asserted against Defendant 402 Avenue T LLC.

C. The Fourth Cause of Action for quantum meruit fails because Plaintiff performed its work for Defendant JAT Construction Group Inc., not for Defendant 402 Avenue T LLC.

Perma Pave Contracting Corp. v Paerdegat Boat & Racquet Club, Inc., 156 A.D.2d 550, 551 (2d Dep't 1989), remains one of the clearest Second Department statements of the rule controlling here. In that case, the Court dismissed a subcontractor's quasi-contract claim against the owner because a property owner that hires a general contractor does not become liable to the subcontractor on a quasi-contract theory unless the owner expressly consents to pay for the subcontractor's performance. Mere consent to, and benefit from, the improvement is not enough.

The Second Department reiterated the same principle in Sears Ready Mix, Ltd. v Lighthouse Mar., Inc., 127 A.D.3d 845, 846 (2d Dep't 2015). There, the Court held that a subcontractor could not recover from the owner in unjust enrichment merely because the owner consented to the improvement and received some benefit from it; the subcontractor also had to show that it was working for the owner when it performed its work. The plaintiff could not make that showing, and the owner was entitled to dismissal.

TV Tech adds the broader quasi-contract principle in equally direct terms: "if the services were performed at the behest of someone other than the defendant, the plaintiff must look to that party for recovery." TV Tech, supra, quoting JLJ Recycling Contrs. Corp. v Town of Babylon, 302 A.D.2d 430, 431 (2d Dep't 2003).

Here, Plaintiff's own Verified Complaint says the work was performed pursuant to Plaintiff's agreement with Defendant JAT Construction Group Inc.

Plaintiff does not allege that Defendant 402 Avenue T LLC retained plaintiff directly, negotiated compensation with plaintiff, promised plaintiff direct payment, or induced plaintiff to furnish labor and materials outside the Defendant JAT Construction Group Inc. subcontract.

To the contrary, Plaintiff's Verified Complaint confirms that Plaintiff performed pursuant to its agreement with Defendant JAT Construction Group Inc., and the motion record confirms that the owner's payment obligations ran to Defendant JAT Construction Group Inc. under the prime contract. The very existence of that contractual structure defeats Plaintiff's effort to recast the matter as one of equity against the owner, Defendant 402 Avenue T LLC.

Plaintiff's own invoice and waiver confirm that Defendant JAT Construction Group Inc. was the party requesting and paying for the work and thus, Plaintiff must therefore look to Defendant JAT Construction Group Inc., not to Defendant 402 Avenue T LLC, for any quantum-meruit recovery.

Plaintiff may argue that it would be inequitable to leave it without recourse if Defendant JAT Construction Group Inc. failed to pay in full but equity does not intervene merely because one contracting party is dissatisfied with the performance of another.

Plaintiff had a subcontract remedy, progress-payment rights, waiver obligations, and a derivative lien remedy to the extent a lien fund existed. Those are the channels the law affords but what plaintiff may *not* do is convert the owner into an insurer of the contractor's debts.

D. The Fifth Cause of Action for unjust enrichment fails for the same reason, and Plaintiff's Verified Complaint's conclusory agency label does not save it.

The Fifth Cause of Action adds the labels “agency” and “unjust enrichment,” but labels do not alter substance.

Perma Pave and Sears make plain that the owner's receipt of the benefit of subcontract work does not, without an express undertaking to pay, create quasi-contract liability.

M. Paladino likewise rejected a subcontractor's attempt to impose quasi-contract liability on an owner where there was no proof that the owner expressly consented to, or otherwise assumed, an obligation to pay the subcontractor.

Here, the prime contract identifies Defendant JAT Construction Group Inc. as the contractor, not Defendant 402 Avenue T LLC's payment agent, Plaintiff's own paperwork shows Defendant JAT Construction Group Inc. acting in its own name, and there is no allegation of any promise by Defendant 402 Avenue T LLC to pay Plaintiff directly.

The Fifth Cause of Action must therefore be dismissed insofar as asserted against Defendant 402 Avenue T LLC.

E. Even if Plaintiff's Mechanic's Lien claim were not dismissed, no personal money judgment may be entered against Defendant 402 Avenue T LLC.

Lien Law § 41 permits enforcement of a mechanic's lien against the property and against “a person liable for the debt upon which the lien is founded”, however, Defendant 402 Avenue T LLC is not such a person here.

Plaintiff's own documents establish that the debt, if any, is Defendant JAT Construction Group Inc.'s debt.

Once the Second, Fourth, and Fifth Causes of Action are dismissed, plaintiff has no remaining basis to seek a personal money judgment against Defendant 402 Avenue T LLC.

Accordingly, the Second, Fourth, and Fifth Causes of Action should be dismissed insofar as asserted against Defendant 402 Avenue T LLC, the Third and Sixth Causes of Action should be recognized for what they already are, claims pleaded *only* against Defendant JAT Construction Group Inc., and every demand for a personal money judgment against Defendant 402 Avenue T LLC should be dismissed as a matter of law.

POINT II

THE FIRST CAUSE OF ACTION TO FORECLOSE THE MECHANIC'S LIEN SHOULD BE DISMISSED BECAUSE NO LIEN FUND EXISTED WHEN THE LIEN WAS FILED

Plaintiff's first cause of action to foreclose its mechanic's lien fails because Plaintiff cannot show that any lien fund existed when the lien was filed on December 16, 2025.

Albert J. Bunce, Ltd. v Fahey, 73 A.D.2d 632 (2d Dep't 1979), is especially instructive, where the Second Department reversed a judgment foreclosing a subcontractor's lien because, by the time the mechanic's lien was filed, the owners had already paid the contractor so substantially in advance of actual completion that there was never a fund to which the lien could attach.

The lesson of Bunce is not narrow, as the Court explained that, under Lien Law § 4, a subcontractor's lien is valid only to the extent of "the sum earned and unpaid on the

contract at the time of filing the notice of lien, and any sum subsequently earned thereon,” and that where no sums were due and owing to the general contractor upon or after the date of filing, the foreclosure claim against the owners must fail. Id.

That principle squarely fits Defendant 402 Avenue T LLC’s showing here, specifically, that Defendant JAT Construction Group Inc.’s own president swears that Defendant JAT Construction Group Inc. had already been paid in full, and indeed overpaid, by the time Plaintiff filed its mechanic’s lien, and that Defendant JAT Construction Group Inc. had no remaining payment claim to which Plaintiff’s derivative rights could attach.

A mechanic’s lien asserted by a subcontractor is purely derivative. It does not create an independent debt running from owner to subcontractor, and it cannot exceed the amount that is earned and unpaid by the owner to the contractor at the time of filing. That principle is fundamental to Lien Law § 4 and has been repeatedly enforced by the appellate courts.

Where there is no sum due and owing from owner to general contractor, there is no lien fund against which a subcontractor’s lien may attach. A subcontractor stands in no better position than the contractor through whom it claims.

That is precisely why the first cause of action fails here. The documentary record submitted on this motion demonstrates that plaintiff contracted with Defendant JAT Construction Group Inc., not with Defendant 402 Avenue T LLC, and that Defendant 402 Avenue T LLC had no remaining payment obligation to Defendant JAT Construction Group Inc. when Plaintiff filed its lien.

The signed declaration of Defendant JAT Construction Group Inc.'s principal states, in substance, that Defendant JAT Construction Group Inc. was terminated, that Defendant JAT Construction Group Inc. had already been paid substantial sums, and that no balance was due and owing from the owner to Defendant JAT Construction Group Inc. as of the lien filing. If that is so, then plaintiff's lien, which is derivative of Defendant JAT Construction Group Inc.'s rights only, necessarily fails as a matter of law.

The Second Department has reiterated the same derivative rule in later cases. In Peri Formwork Sys., Inc. v Lumbermens Mut. Cas. Co., 112 A.D.3d 171, 176-177 (2d Dep't 2013), the Court explained that a subcontractor's right to recover is derivative of the contractor's right to recover and may not exceed the amount owed in the contractual chain above it.

C.C.C. Renovations, Inc. v Victoria Towers Dev. Corp., 168 A.D.3d 664, 665-666 (2d Dep't 2019), states the rule in equally direct language: if the general contractor is not owed any amount under its contract with the owner at the time the subcontractor's lien is filed, the subcontractor may not recover.

GCDM Ironworks v GJF Constr. Corp., 292 A.D.2d 495, 496-497 (2d Dep't 2002), reinforces the lienor's burden. Although that case also discusses owner consent under Lien Law § 3, the point relevant here is the Court's express statement that the subcontractor bears the burden of establishing that money was due and owing to the general contractor from the owner under the primary contract.

Plaintiff cannot carry that burden where the only party whose rights could generate the fund, Defendant JAT Construction Group Inc., has sworn that no money was due from Defendant 402 Avenue T LLC when Plaintiff's Mechanic's Lien was filed.

Bryan's Quality Plus, LLC v Dorime, 112 A.D.3d 870, 870-871 (2d Dep't 2013), underscores that a lienor must come forward with evidentiary facts showing both the existence of a valid lien and "that there were funds due and owing . . . to which the lien could attach."

Plaintiff's pleading alleges only its own claimed subcontract balance but that is not enough since a subcontract balance and a lien fund are not the same thing, and the latter is absent on this record.

By contrast, Defendant 402 Avenue T LLC has submitted substantial, project-specific proof. The Longardo declaration (**Exhibit "1"**) identifies the prime contract, the effective termination of Defendant JAT Construction Group Inc. on December 5, 2025, the September 4, 2025 split checks totaling \$277,290.00, the November 3, 2025 wire of \$60,000.00, and the requisition materials supporting those payments.

Mr. Longardo then explains why those payments exhausted, and exceeded, the value of Defendant JAT Construction Group Inc.'s earned work: a substantial portion represented mobilization billed in advance, the job was terminated before completion, and, after reconciliation, nothing remained due to Defendant JAT Construction Group Inc. That is the very kind of evidentiary explanation the case law *requires*.

Perma Pave does not aid Plaintiff on this record since there, the Second Department declined to dismiss the lien foreclosure claim because the owner relied largely on conclusory testimony and submitted no checks or similar financial documents establishing when full payment was made. Perma Pave, *supra*.

Here, Defendant 402 Avenue T LLC submits the very items Perma Pave found lacking: the actual checks, the wire record, the related payment paperwork, and a sworn

declaration from Defendant JAT Construction Group Inc.'s president explaining why no earned and unpaid balance remained under the prime contract.

Ebert v Van-Mar Developers, Inc., 111 A.D.2d 495, 496-497 (3d Dep't 1985), while from the Third Department, illustrates the same evidentiary principle from the opposite direction.

There, summary judgment was denied because the owner failed to produce checks or comparable financial proof and because the submitted waiver did not resolve payment for work performed after its effective date.

Here, by contrast, the documentary payment proof and the Longardo declaration do address the relevant time period through the lien filing date, and they do so with the specificity that was missing in Ebert.

Plaintiff's anticipated rejoinder will likely be that owner-contractor payment issues raise factual questions unsuitable for pre-answer dismissal but that argument should be rejected here. This is not a case in which the owner relies on vague attorney argument, unsupported bookkeeping notations, or disputed informal correspondence.

Rather, the motion rests on the operative project documents and sworn proof from the contractor itself, together with the payment and waiver materials already generated in the course of the project.

Where the contractor through whom the lienor claims disclaims any presently due contract balance, Plaintiff cannot salvage its lien merely by pleading, in conclusory fashion, that money must still have been owed.

Nor may plaintiff avoid dismissal by contending that the lien can survive so long as some dispute existed somewhere in the contractual chain. The relevant issue is not

whether Plaintiff believes it is unpaid by Defendant JAT Construction Group Inc. since Plaintiff may well claim that it is. Instead, the issue is whether any debt remained due from Defendant 402 Avenue T LLC to Defendant JAT Construction Group Inc. when the lien was filed and Plaintiff's remedy against its own contractor does not enlarge the lien fund or create one where none existed.

Plaintiff may also attempt to rely on the general proposition that a lien foreclosure complaint need only plead the filing of a lien and nonpayment but that principle does not insulate a lien from dismissal where the very documents on which the claim depends demonstrate that the lien cannot attach as a matter of law. A pleading cannot survive where its essential legal predicate, namely the existence of a lien fund, is conclusively negated by the record.

This branch of the motion is reinforced by plaintiff's own prior waiver and release documents because even assuming, *arguendo*, that the Court were to conclude that the unconditional waiver does not by itself extinguish the entire lien claim, it unquestionably narrows and undermines plaintiff's demand, confirms that plaintiff was looking to Defendant JAT Construction Group Inc. for payment, and defeats any attempt to portray the owner as a direct obligor.

At a minimum, it confirms that plaintiff's lien theory must be evaluated within the ordinary contractual chain and not as some free-standing owner obligation.

Accordingly, because a subcontractor's lien rises no higher than the contractor's right to payment, and because the documentary evidence here establishes that no contract balance remained due from Defendant 402 Avenue T LLC to Defendant JAT Construction Group Inc. when Plaintiff filed its Mechanic's Lien, the First Cause of

Action should be dismissed as against Defendant 402 Avenue T LLC under CPLR 3211(a)(1) and CPLR 3211(a)(7) and the notice of pendency cancelled as a consequence.

If the Court concludes that the lien-fund issue should be treated as one for summary judgment because the parties have laid bare the dispositive proof, Defendant 402 Avenue T LLC respectfully requests that relief in the alternative pursuant to CPLR 3211(c).

POINT III

UPON DISMISSAL OF THE LIEN-FORECLOSURE CLAIM, THE NOTICE OF PENDENCY MUST BE CANCELED AND THE CAPTION AMENDED

Once the First Cause of Action is dismissed, the notice of pendency must be canceled. CPLR 6514 authorizes cancellation where the underlying real-property claim has been extinguished. A notice of pendency is not an independent remedy; it is merely ancillary to a claim affecting title to, possession, use, or enjoyment of real property.

The notice of pendency stands or falls with the real-property claim it was filed to support. Once the lien foreclosure claim is dismissed, there remains no basis to continue clouding title to the property and CPLR 6514(a) *directs* cancellation where the action no longer affects title to, or the possession, use, or enjoyment of, real property.

Here, once Plaintiff's Mechanic's Lien foreclosure cause of action falls, no claim remains that can support the continued clouding of title to the Property and the notice of pendency should be cancelled forthwith.

The direct personal claims against Defendant 402 Avenue T LLC fail as a matter of law, and the derivative lien claim fails because no lien fund existed. The Kings County

Clerk should therefore be directed to cancel the notice of pendency filed against the Property.

If the Complaint is dismissed in its entirety as against Defendant 402 Avenue T LLC, the action should also be severed and the caption amended to delete Defendant 402 Avenue T LLC, leaving the matter to proceed, if at all, only as between plaintiff and the remaining defendants.

Although defendant has also identified defects within the notice itself, including the erroneous reference to the lien year, this motion does not depend upon curable technical irregularities.

The more fundamental point is that plaintiff lacks a viable foreclosure claim against the property and once that is determined, cancellation follows as a matter of course.

CONCLUSION

WHEREFORE, it is respectfully requested that this Court grant Defendant 402 Avenue T LLC's instant Motion to Dismiss and issue an Order pursuant to CPLR 3211(a)(1), CPLR 3211(a)(7), CPLR 3211(c), and CPLR 6514 (a) dismissing the Verified Complaint in its entirety insofar as asserted against 402 Avenue T LLC; (b) alternatively, dismissing the Second, Fourth, and Fifth Causes of Action insofar as asserted against 402 Avenue T LLC and dismissing all demands for a personal money judgment against 402 Avenue T LLC; (c) canceling the notice of pendency upon dismissal of the First Cause of Action; (d) severing and amending the caption to delete 402 Avenue T LLC if the Complaint is dismissed in its entirety as against that defendant; and (e) granting such other and further relief as the Court deems just and proper motion

to dismiss the Complaint in its entirety, together with such other and further relief as the Court deems just and proper.

Dated: March 20, 2026

Respectfully submitted,



Gary Rosen, Esq.
Rosen Law LLC
Attorneys for Defendant 402 Avenue T LLC
216 Lakeville Road
Great Neck, New York 11020
Tel. (516) 437-3400
groten@rosenlawllc.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARINE BULKHEADING, INC.,

Index No. 500420/2026

Plaintiffs,

- against -

JAT CONSTRUCTION GROUP INC., and
402 AVENUE T LLC, and "JOHN DOE" said name(s)
being fictitious and unknown to plaintiff, such person(s)
and/or entity(ies) being intended to be lienors, mortgagees,
judgment creditors, tenants, occupants, or other parties
and/or entity(ies) with an interest in the real property located
at 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn,
NY 11223, City and State of New York, County of Kings,
Block 7104, Lot 458,

**AFFIRMATION OF GARY
ROSEN, ESQ. IN SUPPORT OF
MOTION TO DISMISS**

Motion Seq. No. 001

Defendants.

-----X

GARY ROSEN, ESQ., an attorney duly admitted to practice law in the State of New
York affirms under penalties of perjury that:

1. I am the attorney for Defendant 402 Avenue T LLC ("402") in this action.
2. I submit this affirmation in support of Defendant 402 Avenue T LLC's pre-answer motion to dismiss the Verified Complaint pursuant to CPLR 3211(a)(1), CPLR 3211(a)(7), CPLR 3211(c), and CPLR 6514.
3. I am fully familiar with the facts and procedural posture of this matter based upon my review of the file maintained by my office, the documents produced by Defendant 402 Avenue T LLC, the papers filed by plaintiff, and the sworn declaration furnished by John Longardo, the president of co-defendant JAT Construction Group Inc. ("JAT")
4. This is an action by plaintiff Marine Bulkheading, Inc. ("Marine") arising out of foundation, piling, excavation, and related work performed at 402 Avenue T a/k/a 2044 East 2nd Street, Brooklyn, New York (the "Property").

5. Although Marine now attempts to impose personal liability upon Defendant 402 Avenue T LLC, Marine's own pleading and supporting papers identify JAT, not Defendant 402 Avenue T LLC, as the entity with whom Marine contracted and from whom Marine expected payment.

6. Marine commenced this action by summons and verified complaint filed January 6, 2026 (**NYSCEF Doc. No. 1**). On the same filing sequence, Marine filed a notice of pendency against the Property (**NYSCEF Doc. No. 5**).

7. By stipulation dated March 3, 2026 (**NYSCEF Doc. No. 9**), plaintiff and Defendant 402 Avenue T LLC agreed that Defendant 402 Avenue T LLC would respond to the Verified Complaint on or before March 20, 2026, and Defendant 402 Avenue T LLC acknowledged service while waiving only service-of-process and personal-jurisdiction defenses.

8. Marine's own complaint alleges that JAT was the general contractor for the project and that, on or about October 1, 2025, JAT entered into the agreement with Marine pursuant to which Marine allegedly performed the work at issue. Marine's lien says the same thing in even plainer terms: it states that the party by whom Marine was employed was "JAT CONSTRUCTION GROUP," that the party with whom the contract was made was "JAT CONSTRUCTION GROUP," and that the labor performed was "Supply and Install associated materials for building foundation, superstructure and foundation waterproofing."

9. The client file and the Longardo declaration confirm that structure. The prime contract is an AIA A101-2017 agreement between 402, as owner, and JAT, as contractor, for the ground-up construction of the residence at the Property. The Longardo declaration further states that 402 terminated JAT effective December 5, 2025, due to JAT's failure to perform. Annexed

collectively as **Exhibit “1”** is the Declaration of John Longardo dated March 16, 2026, together with the exhibits appended thereto.

10. Marine’s own September 25, 2025 invoice is addressed to JAT at 2266 McDonald Avenue, Brooklyn, New York, and seeks payment from JAT in the amount of \$121,500.00 for “Invoice #1 for SOE / Foundation @ 2044 East 2nd Street Brooklyn, NY 11223.” A copy of that invoice is annexed hereto as **Exhibit “2”**.

11. Marine also executed an Unconditional Waiver and Release on Progress Payment dated September 25, 2025. In that document, Marine identified JAT Construction Group as the maker of the check and Marine Bulkheading Inc. as the payee in the amount of \$121,500.00. Marine added by handwriting that the waiver applied “up to period end date only of 9/30/25.” A copy of that waiver is annexed hereto as **Exhibit “3”**.

12. Even with the handwritten limitation, the document is a direct admission that Marine was being paid by JAT, not by 402, and that Marine was releasing lien rights for the work covered by that progress payment.

13. The complaint likewise underscores that Marine looked to JAT for payment. Its Third Cause of Action is pleaded only against JAT for breach of contract. Its Sixth Cause of Action, again pleaded only against JAT, alleges that JAT tendered a \$200,000.00 check drawn on JAT’s own bank account as partial payment for the work and that the check was dishonored for insufficient funds. Those allegations are irreconcilable with any suggestion that 402 separately undertook to pay Marine.

14. The Longardo declaration is particularly significant to Marine’s lien-foreclosure claim. Mr. Longardo swears, based on personal knowledge, that JAT received project payments from 402 totaling \$337,290.00, consisting of two checks in the amount of \$138,645.00 each on

September 4, 2025 and a \$60,000.00 wire on November 3, 2025. He further states that a substantial portion of those monies represented mobilization charges billed in advance, that JAT was ultimately paid in full and in fact overpaid after crediting the value of the work actually performed, that no monies were due or owing from 402 to JAT at the time Marine filed its lien on December 16, 2025, and that JAT waives and relinquishes any present claim for payment against 402 in connection with the project.

15. The declaration is not a naked, after-the-fact conclusion. It is accompanied by the contemporaneous AIA payment application, the split September 4 checks, the November 3 wire record, the termination notice, and the filed lien papers. Those materials show exactly what was missing in cases where owners failed to establish the absence of a lien fund.

16. For the reasons set forth more fully in the accompanying memorandum of law, the Verified Complaint should be dismissed in its entirety as against 402. At a minimum, the personal claims against 402, the Second, Fourth, and Fifth Causes of Action, together with any demand for a personal money judgment, must be dismissed as a matter of settled Second Department law.

WHEREFORE, it is respectfully requested that this Court grant Defendant 402 Avenue T LLC's instant Motion to Dismiss and issue an Order pursuant to CPLR 3211(a)(1), CPLR 3211(a)(7), CPLR 3211(c), and CPLR 6514 (a) dismissing the Verified Complaint in its entirety insofar as asserted against 402 Avenue T LLC; (b) alternatively, dismissing the Second, Fourth, and Fifth Causes of Action insofar as asserted against 402 Avenue T LLC and dismissing all demands for a personal money judgment against 402 Avenue T LLC; (c) canceling the notice of pendency upon dismissal of the First Cause of Action; (d) severing and amending the caption to delete 402 Avenue T LLC if the Complaint is dismissed in its entirety as against that defendant; and (e) granting such other and further relief as the Court deems just and proper motion to dismiss

the Complaint in its entirety, together with such other and further relief as the Court deems just and proper.

Dated: March 20, 2026

Respectfully submitted,



Gary Rosen, Esq.
Rosen Law LLC
Attorneys for Defendant 402 Avenue T LLC
216 Lakeville Road
Great Neck, New York 11020
Tel. (516) 437-3400
grosen@rosenlawllc.com

**DECLARATION OF JOHN LONGARDO
UNDER PENALTIES OF PERJURY
PURSUANT TO CPLR 2106**

1. I, John Longardo, declare under penalties of perjury under the laws of the State of New York that the following statements are true and correct.

2. I am the President of JAT Construction Group Inc. ("JAT"). I make this declaration based upon my personal knowledge.

3. I am fully familiar with the contract between JAT and 402 Avenue T LLC ("Owner") for the project located at 402 Avenue T, Brooklyn, New York (the "Project").

4. On September 2, 2025, JAT, as contractor, and Owner entered into a contract for the ground-up construction of a 12,000+ square foot single-family residence located at 402 Avenue T, Brooklyn, New York. A copy of the contract is attached as Exhibit "1" (the "Contract").

5. On or about December 5, 2025, Owner terminated the Contract due to JAT's failure to perform. A copy of the termination notice is attached as Exhibit "2."

6. JAT received payments from Owner totaling \$337,290.00, as follows:

- a. \$138,645.00 on or about September 4, 2025, by check no. 1029 (Exhibit "3");
- b. \$138,645.00 on or about September 4, 2025, by check no. 1030 (Exhibit "3"); and
- c. \$60,000.00 on or about November 3, 2025, by wire transfer (Exhibit "4").

7. The initial payment of \$277,290.00 was made pursuant to the Application and Certificate for Payment attached as Exhibit "5." That payment application reflects that the funds were to be applied to:

- A. Mobilization – \$150,000.00
- B. Demolition – \$23,100.00

C. Piles and shoring – \$135,000.00

less 10% retainage of \$30,810.00, for a total payment of \$277,290.00.

8. A substantial portion of the sums paid to JAT represented mobilization charges billed in advance and were not earned strictly in proportion to the work actually completed in the field.

9. After crediting the value of the work actually performed by JAT on the Project, JAT was paid in full and, in fact, was overpaid, based in substantial part on the mobilization charges it received.

10. Accordingly, no monies are due or owing from Owner to JAT for the Project, and JAT has no present claim for payment against Owner in connection with the Project.

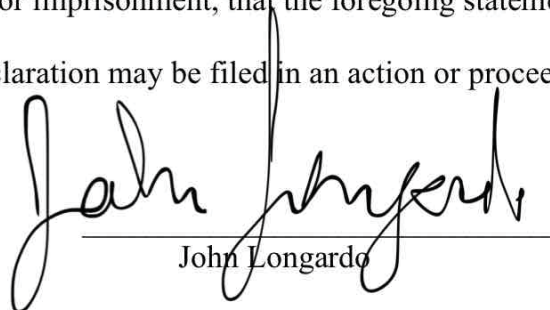
11. JAT hereby waives and relinquishes any present claim for payment against Owner in connection with the Project because JAT was overpaid based on the mobilization charges it received.

12. The mechanic's lien filed by Marine Bulkheading, Inc. against the Project property on or about December 16, 2025, attached as Exhibit "6," does not mean that any monies are due from Owner to JAT.

13. The mechanic's lien filed by Urban Industrial Group LLC against the Project property on or about February 20, 2026, attached as Exhibit "7," does not mean that any monies are due from Owner to JAT.

I affirm this 16th day of March, 2026, under the penalties of perjury under the laws of the State of New York, which may include a fine or imprisonment, that the foregoing statements are true and correct, and I understand that this declaration may be filed in an action or proceeding in a court of law.

Dated: March 16, 2026



John Longardo

Dated: March 16, 2026

/s/ John Longardo

John Longardo

Affiant

AIA® Document A101® – 2017
Standard Form of Agreement Between Owner and Contractor where the basis of payment is a Stipulated Sum

AGREEMENT made as of the Second day of September in the year 2025
(In words, indicate day, month and year.)

BETWEEN the Owner:
(Name, legal status, address and other information)

Joseph Gabbay
/ 402 Ave T, LLC
Owner
2044 East 2nd St, Brooklyn, NY
(Paragraph Deleted)

11223

and the Contractor:
(Name, legal status, address and other information)

JAT Construction Group Inc
2266 McDonald Ave, Brooklyn, 11223
John Longardo
jl@jatcg.com

for the following Project:
(Name, location and detailed description)

Gabbay Residence
2044 East 2nd St, Brooklyn, NY 11223
Ground up construction of 12,000 + sqft. single family residential home

The Architect:
(Name, legal status, address and other information)

Warren Meister Architects

Architect
29 West 36th St #303, New York, NY 10018

The Owner and Contractor agree as follows.

ADDITIONS AND DELETIONS:

The author of this document has added information needed for its completion. The author may also have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes added information as well as revisions to the standard form text is available from the author and should be reviewed. A vertical line in the left margin of this document indicates where the author has added necessary information and where the author has added to or deleted from the original AIA text.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

The parties should complete A101®-2017, Exhibit A, Insurance and Bonds, contemporaneously with this Agreement. AIA Document A201®-2017, General Conditions of the Contract for Construction, is adopted in this document by reference. Do not use with other general conditions unless this document is modified.

TABLE OF ARTICLES

- 1 THE CONTRACT DOCUMENTS
- 2 THE WORK OF THIS CONTRACT
- 3 DATE OF COMMENCEMENT AND SUBSTANTIAL COMPLETION
- 4 CONTRACT SUM
- 5 PAYMENTS
- 6 DISPUTE RESOLUTION
- 7 TERMINATION OR SUSPENSION
- 8 MISCELLANEOUS PROVISIONS
- 9 ENUMERATION OF CONTRACT DOCUMENTS

EXHIBIT A INSURANCE AND BONDS

ARTICLE 1 THE CONTRACT DOCUMENTS

The Contract Documents consist of this Agreement, Conditions of the Contract (General, Supplementary, and other Conditions), Drawings, Specifications, Addenda issued prior to execution of this Agreement, other documents listed in this Agreement, and Modifications issued after execution of this Agreement, all of which form the Contract, and are as fully a part of the Contract as if attached to this Agreement or repeated herein. The Contract represents the entire and integrated agreement between the parties hereto and supersedes prior negotiations, representations, or agreements, either written or oral. An enumeration of the Contract Documents, other than a Modification, appears in Article 9.

ARTICLE 2 THE WORK OF THIS CONTRACT

The Contractor shall fully execute the Work described in the Contract Documents, except as specifically indicated in the Contract Documents to be the responsibility of others.

ARTICLE 3 DATE OF COMMENCEMENT AND SUBSTANTIAL COMPLETION

§ 3.1 The date of commencement of the Work shall be:

(Check one of the following boxes.)

☐ The date of this Agreement.

☐ A date set forth in a notice to proceed issued by the Owner.

☒ Established as follows:

(Insert a date or a means to determine the date of commencement of the Work.)

September 9, 2025

If a date of commencement of the Work is not selected, then the date of commencement shall be the date of this Agreement.

§ 3.2 The Contract Time shall be measured from the date of commencement of the Work.

§ 3.3 Substantial Completion

§ 3.3.1 Subject to adjustments of the Contract Time as provided in the Contract Documents, the Contractor shall achieve Substantial Completion of the entire Work:

Init.

AIA Document A101 – 2017. Copyright © 1916, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1967, 1974, 1977, 1987, 1991, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 01:07:31 ET on 09/11/2025 under Order No.500001113 which expires on 09/11/2026, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.

User Notes:

(3B9ADA20)

(Check one of the following boxes and complete the necessary information.)

☐ Not later than () calendar days from the date of commencement of the Work.

☐ By the following date:

§ 3.3.2 Subject to adjustments of the Contract Time as provided in the Contract Documents, if portions of the Work are to be completed prior to Substantial Completion of the entire Work, the Contractor shall achieve Substantial Completion of such portions by the following dates:

Portion of Work	Substantial Completion Date
Substantial Completion	9/8/2026

§ 3.3.3 If the Contractor fails to achieve Substantial Completion as provided in this Section 3.3, liquidated damages of \$1,000 per each day of delay shall be assessed. The damages do not apply if the delay in substantial completion is not directly due to JAT Construction Group's performance or negligence &/or delays in materials being ordered by the owner.

ARTICLE 4 CONTRACT SUM

§ 4.1 The Owner shall pay the Contractor the Contract Sum in current funds for the Contractor's performance of the Contract. The Contract Sum shall be Three Million Four Hundred & Sixty Thousand Four Hundred & Seventy-Four Dollars & Zero Cents (\$3,460,474.00) subject to additions and deductions as provided in the Contract Documents. **Notwithstanding anything to the contrary herein, all labor and materials shall be completed in accordance with the drawings as set forth in section 9.1.5 with the exceptions of material to be supplied by owner as listed in EXHIBIT A.**

§ 4.2 Alternates

§ 4.2.1 Alternates, if any, included in the Contract Sum:

Item	Price
------	-------

§ 4.2.2 Subject to the conditions noted below, the following alternates may be accepted by the Owner following execution of this Agreement. Upon acceptance, the Owner shall issue a Modification to this Agreement. (Insert below each alternate and the conditions that must be met for the Owner to accept the alternate.)

Item	Price	Conditions for Acceptance
N/A	N/A	N/A

§ 4.3 Allowances, if any, included in the Contract Sum:
(Identify each allowance.)

Item	Price
------	-------

§ 4.4 Unit prices, if any:
(Identify the item and state the unit price and quantity limitations, if any, to which the unit price will be applicable.)

Item	Units and Limitations	Price per Unit (\$0.00)
------	-----------------------	-------------------------

(Table Deleted)

§ 4.5 Liquidated damages, if any:
(Insert terms and conditions for liquidated damages, if any.)

Init.

AIA Document A101 – 2017. Copyright © 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1967, 1974, 1977, 1987, 1991, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 01:07:31 ET on 09/11/2025 under Order No.500001113 which expires on 09/11/2026, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.

User Notes:

(3B9ADA20)

§ 4.6 Other:

(Insert provisions for bonus or other incentives, if any, that might result in a change to the Contract Sum.)

N/A

ARTICLE 5 PAYMENTS**§ 5.1 Progress Payments**

§ 5.1.1 Based upon Applications for Payment submitted to the Architect by the Contractor and Certificates for Payment issued by the Architect, the Owner shall make progress payments on account of the Contract Sum to the Contractor as provided below and elsewhere in the Contract Documents.

§ 5.1.2 The period covered by each Application for Payment shall be one calendar month ending on the last day of the month, or as follows:

N/A

§ 5.1.3 Provided that an Application for Payment is received by the Architect & Owner not later than the 25th day of a month & approved by the Architect & Owner based on the construction progress, the Owner shall make payment of the amount certified to the Contractor not later than the 10th day of the following month. If an Application for Payment is received by the Architect after the application date fixed above, payment of the amount certified shall be made by the Owner not later than Fifteen (15) days after the Architect receives the Application for Payment.

(Federal, state or local laws may require payment within a certain period of time.)

§ 5.1.4 Each Application for Payment shall be based on the most recent schedule of values submitted by the Contractor in accordance with the Contract Documents. The schedule of values shall allocate the entire Contract Sum among the various portions of the Work. The schedule of values shall be prepared in such form, and supported by such data to substantiate its accuracy, as the Architect may require. This schedule of values shall be used as a basis for reviewing the Contractor's Applications for Payment.

§ 5.1.5 Applications for Payment shall show the percentage of completion of each portion of the Work as of the end of the period covered by the Application for Payment.

§ 5.1.6 In accordance with AIA Document A201™-2017, General Conditions of the Contract for Construction, and subject to other provisions of the Contract Documents, the amount of each progress payment shall be computed as follows:

§ 5.1.6.1 The amount of each progress payment shall first include:

- .1 That portion of the Contract Sum properly allocable to completed Work;
- .2 That portion of the Contract Sum properly allocable to materials and equipment delivered and suitably stored at the site for subsequent incorporation in the completed construction, or, if approved in advance by the Owner, suitably stored off the site at a location agreed upon in writing; and
- .3 That portion of Construction Change Directives that the Architect determines, in the Architect's professional judgment, to be reasonably justified.

§ 5.1.6.2 The amount of each progress payment shall then be reduced by:

- .1 The aggregate of any amounts previously paid by the Owner;
- .2 The amount, if any, for Work that remains uncorrected and for which the Architect has previously withheld a Certificate for Payment as provided in Article 9 of AIA Document A201-2017;
- .3 Any amount for which the Contractor does not intend to pay a Subcontractor or material supplier, unless the Work has been performed by others the Contractor intends to pay;
- .4 For Work performed or defects discovered since the last payment application, any amount for which the Architect may withhold payment, or nullify a Certificate of Payment in whole or in part, as provided in Article 9 of AIA Document A201-2017; and
- .5 Retainage withheld pursuant to Section 5.1.7.

Init.

AIA Document A101 – 2017, Copyright © 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1967, 1974, 1977, 1987, 1991, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 01:07:31 ET on 09/11/2025 under Order No.500001113 which expires on 09/11/2026, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiaccontracts.com.

User Notes:

(3B9ADA20)

§ 5.1.7 Retainage

§ 5.1.7.1 For each progress payment made prior to Substantial Completion of the Work, the Owner may withhold the following amount, as retainage, from the payment otherwise due:

(Insert a percentage or amount to be withheld as retainage from each Application for Payment. The amount of retainage may be limited by governing law.)

10%

§ 5.1.7.1.1 The following items are not subject to retainage:

(Insert any items not subject to the withholding of retainage, such as general conditions, insurance, etc.)

General Conditions & Insurance

§ 5.1.7.2 Reduction or limitation of retainage, if any, shall be as follows:

(If the retainage established in Section 5.1.7.1 is to be modified prior to Substantial Completion of the entire Work, including modifications for Substantial Completion of portions of the Work as provided in Section 3.3.2, insert provisions for such modifications.)

Retainage to be reduced to 5% once substantial completion is achieved & remaining 5% paid after all the punch list work is completed & signed-off by the Owner.

§ 5.1.7.3 Except as set forth in this Section 5.1.7.3, upon Substantial Completion of the Work, the Contractor may submit an Application for Payment that includes the retainage withheld from prior Applications for Payment pursuant to this Section 5.1.7. The Application for Payment submitted at Substantial Completion shall not include retainage as follows:

(Insert any other conditions for release of retainage upon Substantial Completion.)

N/A

(Paragraph Deleted)

§ 5.1.9 Except with the Owner's prior approval, the Contractor shall not make advance payments to suppliers for materials or equipment which have not been delivered and stored at the site.

§ 5.2 Final Payment

§ 5.2.1 Final payment, constituting the entire unpaid balance of the Contract Sum, shall be made by the Owner to the Contractor when

- .1 the Contractor has fully performed the Contract except for the Contractor's responsibility to correct Work as provided in Article 12 of AIA Document A201-2017, and to satisfy other requirements, if any, which extend beyond final payment; and
- .2 a final Certificate for Payment has been issued by the Architect.

§ 5.2.2 The Owner's final payment to the Contractor shall be made no later than 30 days after the issuance of the Architect's final Certificate for Payment, or as follows:

§ 5.3 Interest

Payments due and unpaid under the Contract shall bear interest from the date payment is due at the rate stated below, or in the absence thereof, at the legal rate prevailing from time to time at the place where the Project is located.

(Insert rate of interest agreed upon, if any.)

5%

Init.

AIA Document A101 – 2017. Copyright © 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1967, 1974, 1977, 1987, 1991, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 01:07:31 ET on 09/11/2025 under Order No.500001113 which expires on 09/11/2026, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiaccontracts.com.

User Notes:

(3B9ADA20)

ARTICLE 6 DISPUTE RESOLUTION**§ 6.1 Initial Decision Maker**

The Architect will serve as the Initial Decision Maker pursuant to Article 15 of AIA Document A201–2017, unless the parties appoint below another individual, not a party to this Agreement, to serve as the Initial Decision Maker.
(If the parties mutually agree, insert the name, address and other contact information of the Initial Decision Maker, if other than the Architect.)

N/A
 N/A
 N/A
 N/A

§ 6.2 Binding Dispute Resolution

For any Claim subject to, but not resolved by, mediation pursuant to Article 15 of AIA Document A201–2017, the method of binding dispute resolution shall be as follows:
(Check the appropriate box.)

- ☒ Arbitration pursuant to Section 15.4 of AIA Document A201–2017
- ☐ Litigation in a court of competent jurisdiction
- ☐ Other *(Specify)*

If the Owner and Contractor do not select a method of binding dispute resolution, or do not subsequently agree in writing to a binding dispute resolution method other than litigation, Claims will be resolved by litigation in a court of competent jurisdiction.

ARTICLE 7 TERMINATION OR SUSPENSION

§ 7.1 The Contract may be terminated by the Owner or the Contractor as provided in Article 14 of AIA Document A201–2017.

§ 7.1.1 If the Contract is terminated for the Owner's convenience in accordance with Article 14 of AIA Document A201–2017, then the Owner shall pay the Contractor a termination fee as follows:
(Insert the amount of, or method for determining, the fee, if any, payable to the Contractor following a termination for the Owner's convenience.)

No additional termination fee to be paid to the Contractor as long as Contractor is compensated for all the work completed & materials purchased & stored on/off site including the applicable retainage.

§ 7.2 The Work may be suspended by the Owner as provided in Article 14 of AIA Document A201–2017.

ARTICLE 8 MISCELLANEOUS PROVISIONS

§ 8.1 Where reference is made in this Agreement to a provision of AIA Document A201–2017 or another Contract Document, the reference refers to that provision as amended or supplemented by other provisions of the Contract Documents.

§ 8.2 The Owner's representative:
(Name, address, email address, and other information)

Joseph Gabbay

2044 East 2nd St, Brooklyn, NY 11223
 jgabbay@bluestarall.com

Init.

AIA Document A101 – 2017. Copyright © 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1967, 1974, 1977, 1987, 1991, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 01:07:31 ET on 09/11/2025 under Order No.500001113 which expires on 09/11/2026, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiaccontracts.com.

User Notes:

(3B9ADA20)

§ 8.3 The Contractor's representative:
(Name, address, email address, and other information)

John Longardo
2266 McDonald Ave, Brooklyn, NY 11223
jl@jatcg.com

§ 8.4 Neither the Owner's nor the Contractor's representative shall be changed without ten days' prior notice to the other party.

§ 8.5 Insurance and Bonds

§ 8.5.1 The Owner and the Contractor shall purchase and maintain insurance as set forth in AIA Document A101™-2017, Standard Form of Agreement Between Owner and Contractor where the basis of payment is a Stipulated Sum, Exhibit A, Insurance and Bonds, and elsewhere in the Contract Documents.

§ 8.5.2

§ 8.6 Notice in electronic format, pursuant to Article 1 of AIA Document A201-2017, may be given in accordance with a building information modeling exhibit, if completed, or as otherwise set forth below:

(If other than in accordance with a building information modeling exhibit, insert requirements for delivering notice in electronic format such as name, title, and email address of the recipient and whether and how the system will be required to generate a read receipt for the transmission.)

N/A

§ 8.7 Other provisions:

N/A

ARTICLE 9 ENUMERATION OF CONTRACT DOCUMENTS

§ 9.1 This Agreement is comprised of the following documents:

- .1 AIA Document A101™-2017, Standard Form of Agreement Between Owner and Contractor
- .2
- .3
- .4

(Insert the date of the building information modeling exhibit incorporated into this Agreement.)

- .5 Drawings

Init.

AIA Document A101 – 2017. Copyright © 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1967, 1974, 1977, 1987, 1991, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 01:07:31 ET on 09/11/2025 under Order No.500001113 which expires on 09/11/2026, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.

User Notes:

(3B9ADA20)

Number	Title	Date
G-101, G-102, G-103, EN-100, EN-101, D-100, A-200, A-201, A-202, A-203, A-204, A-300, A-301, A-400, A-401, A-500, A-501, A-502, A-503, A-504, A-505, A-600, A-700, A-701, A-800, A-800.1, A-801, A-801.1, A-802, A-802.1, A-803, A-803.1, A-804, A-805, A-806, A-807, FF-101, FF-102, SE-001, SE-100, SE-200, SE-201, SE-202, SE-300, SE-301, SE-302, FO-001, FO-002, FO-100, FO-200, FO-201, S-001, S-002, S-100, S-101, S-102, S-103, S-200, S-500, S-501, S-502, S-503, S-504, S-505, S-506	Architectural Drawings SOE Drawings Foundation Drawings Structural Drawings MEP Drawings	8-1-2025 7-25-2025 7-25-2025 7-25-2025

(Table Deleted)

.6 Specifications

Section	Title	Date	Pages
N/A	N/A	N/A	N/A

.7 Addenda, if any:

Number	Date	Pages
N/A	N/A	N/A

Portions of Addenda relating to bidding or proposal requirements are not part of the Contract Documents unless the bidding or proposal requirements are also enumerated in this Article 9.

.8 Other Exhibits:

(Check all boxes that apply and include appropriate information identifying the exhibit where required.)

☐ AIA Document E204™-2017, Sustainable Projects Exhibit, dated as indicated below:
(Insert the date of the E204-2017 incorporated into this Agreement.)

☐ The Sustainability Plan:

Title	Date	Pages
-------	------	-------

☐ Supplementary and other Conditions of the Contract:

Document	Title	Date	Pages
----------	-------	------	-------

.9 Other documents, if any, listed below:

(List here any additional documents that are intended to form part of the Contract Documents. AIA Document A201™-2017 provides that the advertisement or invitation to bid, Instructions to Bidders,

Init.

AIA Document A101 – 2017. Copyright © 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1967, 1974, 1977, 1987, 1991, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 01:07:31 ET on 09/11/2025 under Order No.500001113 which expires on 09/11/2026, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.

User Notes:

(3B9ADA20)

sample forms, the Contractor's bid or proposal, portions of Addenda relating to bidding or proposal requirements, and other information furnished by the Owner in anticipation of receiving bids or proposals, are not part of the Contract Documents unless enumerated in this Agreement. Any such documents should be listed here only if intended to be part of the Contract Documents.)

Exhibit-A Notes, Qualifications & Exclusions
Exhibit-B Schedule of Values
Exhibit-C Construction Schedule
Exhibit-D JAT Certificate of Insurance
Exhibit-E Unconditional Lien Waiver

This Agreement entered into as of the day and year first written above.

OWNER (Signature)

Joseph Gabbay/402 Ave T, LLC Owner
(Printed name and title)

CONTRACTOR (Signature)

John Longardo Member
(Printed name and title)

Init.

AIA Document A101 – 2017. Copyright © 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1967, 1974, 1977, 1987, 1991, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 01:07:31 ET on 09/11/2025 under Order No.500001113 which expires on 09/11/2026, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiaccontracts.com.
User Notes:

(3B9ADA20)

Additions and Deletions Report for AIA® Document A101® – 2017

This Additions and Deletions Report, as defined on page 1 of the associated document, reproduces below all text the author has added to the standard form AIA document in order to complete it, as well as any text the author may have added to or deleted from the original AIA text. Added text is shown underlined. Deleted text is indicated with a horizontal line through the original AIA text.

Note: This Additions and Deletions Report is provided for information purposes only and is not incorporated into or constitute any part of the associated AIA document. This Additions and Deletions Report and its associated document were generated simultaneously by AIA software at 01:07:31 ET on 09/11/2025.

PAGE 1

AGREEMENT made as of the Second day of September in the year 2025

...

Joseph Gabbay-
/ 402 Ave T, LLC
Owner
2044 East 2nd St, Brooklyn, NY

11223

...

JAT Construction Group Inc
2266 McDonald Ave, Brooklyn, 11223
John Longardo
jl@jatcg.com

...

Gabbay Residence
2044 East 2nd St, Brooklyn, NY 11223
Ground up construction of 12,000 + sqft. single family residential home

...

Warren Meister Architects-
Architect
29 West 36th St #303, New York, NY 10018

PAGE 2

[X] Established as follows:

...

September 9, 2025

PAGE 3

Additions and Deletions Report for AIA Document A101 – 2017. Copyright © 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1967, 1974, 1977, 1987, 1991, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 01:07:31 ET on 09/11/2025 under Order No.500001113 which expires on 09/11/2026, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.

User Notes:

(3B9ADA20)

[] By the following date:-

...

Substantial Completion

9/8/2026

...

§ 3.3.3 If the Contractor fails to achieve Substantial Completion as provided in this Section 3.3, liquidated damages, if any, ~~shall be assessed as set forth in Section 4.5, damages of \$1,000 per each day of delay shall be assessed.~~ The damages do not apply if the delay in substantial completion is not directly due to JAT Construction Group's performance or negligence &/or delays in materials being ordered by the owner.

...

§ 4.1 The Owner shall pay the Contractor the Contract Sum in current funds for the Contractor's performance of the Contract. The Contract Sum shall be ~~(\$-), Three Million Four Hundred & Sixty Thousand Four Hundred & Seventy-Four Dollars & Zero Cents (\$3,460,474.00)~~ subject to additions and deductions as provided in the Contract Documents. Notwithstanding anything to the contrary herein, all labor and materials shall be completed in accordance with the drawings as set forth in section 9.1.5 with the exceptions of material to be supplied by owner as listed in EXHIBIT A.

...

N/A

N/A

N/A

...

Item

Units and Limitations

Price per Unit (\$0.00)

Item

Units and Limitations

Price per Unit (\$0.00)

...

Item

Units and Limitations

Price per Unit (\$0.00)

PAGE 4

N/A

...

N/A

...

§ 5.1.3 Provided that an Application for Payment is received by the Architect ~~not later than the day of a month, & Owner not later than the 25th day of a month & approved by the Architect & Owner based on the construction progress,~~ the Owner shall make payment of the amount certified to the Contractor not later than the 10th day of the following month. If an Application for Payment is received by the Architect after the application date fixed above, payment of the amount certified shall be made by the Owner not later than Fifteen (15) days after the Architect receives the Application for Payment.

...

§ 5.1.4 Each Application for Payment shall be based on the most recent schedule of values submitted by the Contractor in accordance with the Contract Documents. The schedule of values shall allocate the entire Contract Sum among the various portions of the Work. The schedule of values shall be prepared in such form, and supported by such data to substantiate its accuracy, as the Architect may require. This schedule of values shall be used as a basis for reviewing the Contractor's Applications for Payment.

...

§ 5.1.5 Applications for Payment shall show the percentage of completion of each portion of the Work as of the end of the period covered by the Application for Payment.

...

- .3 Any amount for which the Contractor does not intend to pay a Subcontractor or material supplier, unless the Work has been performed by others the Contractor intends to pay;

PAGE 5

§ 5.1.7.1 For each progress payment made prior to Substantial Completion of the Work, the Owner may withhold the following amount, as retainage, from the payment otherwise due:

...

10%

...

General Conditions & Insurance

...

Retainage to be reduced to 5% once substantial completion is achieved & remaining 5% paid after all the punch list work is completed & signed-off by the Owner.

...

N/A

...

~~§ 5.1.8 If final completion of the Work is materially delayed through no fault of the Contractor, the Owner shall pay the Contractor any additional amounts in accordance with Article 9 of AIA Document A201-2017.~~

...

~~% 5%~~

PAGE 6

N/A

N/A

N/A

N/A

...

[X] Arbitration pursuant to Section 15.4 of AIA Document A201–2017

...

No additional termination fee to be paid to the Contractor as long as Contractor is compensated for all the work completed & materials purchased & stored on/off site including the applicable retainage.

...

Joseph Gabbay

2044 East 2nd St, Brooklyn, NY 11223

jgabbay@bluestarall.com

PAGE 7

John Longardo

2266 McDonald Ave, Brooklyn, NY 11223

jl@jatcg.com

...

§ 8.4 Neither the Owner's nor the Contractor's representative shall be changed without ten days' prior notice to the other party.

...

§ 8.5.2 ~~The Contractor shall provide bonds as set forth in AIA Document A101™ 2017 Exhibit A, and elsewhere in the Contract Documents.~~

...

N/A

...

N/A

...

.2 ~~AIA Document A101™ 2017, Exhibit A, Insurance and Bonds~~

...

.3 ~~AIA Document A201™ 2017, General Conditions of the Contract for Construction~~

...

.4 ~~Building information modeling exhibit, dated as indicated below:~~

PAGE 8

Number	Title	Date
<u>Number</u>	<u>Title</u>	<u>Date</u>

...

<u>Number</u>	<u>Title</u>	<u>Date</u>
G-101, G-102, G-103, EN-100, EN-101, D-100, A-200, A-201, A-202, A-203, A-204, A-300, A-301, A-400, A-401, A-500, A-501, A-502, A-503, A-504, A-505, A-600, A-700, A-701, A-800, A-800.1, A-801, A-801.1, A-802, A-802.1, A-803, A-803.1, A-804, A-805, A-806, A-807, FF-101, FF-102, SE-001, SE-100, SE-200, SE-201, SE-202, SE-300, SE-301, SE-302, FO-001, FO-002, FO-100, FO-200, FO-201, S-001, S-002, S-100, S-101, S-102, S-103, S-200, S-500, S-501, S-502, S-503, S-504, S-505, S-506	Architectural Drawings SOE Drawings Foundation Drawings Structural Drawings MEP Drawings	8-1-2025 7-25-2025 7-25-2025 7-25-2025

...

N/A	N/A	N/A	N/A
-----	-----	-----	-----

...

N/A	N/A	N/A
-----	-----	-----

PAGE 9

Exhibit-A Notes, Qualifications & Exclusions

...

Exhibit-B Schedule of Values

...

Exhibit-C Construction Schedule

...

Exhibit-D JAT Certificate of Insurance

...

Exhibit-E Unconditional Lien Waiver

...

Joseph Gabbay/402 Ave T, LLC Owner

John Longardo Member



Additions and Deletions Report for AIA Document A101 – 2017. Copyright © 1915, 1918, 1925, 1937, 1951, 1956, 1961, 1963, 1967, 1974, 1977, 1987, 1991, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 01:07:31 ET on 09/11/2025 under Order No.500001113 which expires on 09/11/2026, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.

User Notes:

(3B9ADA20)

Certification of Document's Authenticity**AIA® Document D401™ – 2003**

I, John Longardo, hereby certify, to the best of my knowledge, information and belief, that I created the attached final document simultaneously with its associated Additions and Deletions Report and this certification at 01:07:31 ET on 09/11/2025 under Order No. 500001113 from AIA Contract Documents software and that in preparing the attached final document I made no changes to the original text of AIA® Document A101™ - 2017, Standard Form of Agreement Between Owner and Contractor where the basis of payment is a Stipulated Sum, other than those additions and deletions shown in the associated Additions and Deletions Report.

(Signed)

(Title)

(Dated)

EXHIBIT – A

EXHIBIT - A

JAT CONSTRUCTION GROUP
Budget Notes & Qualifications
2044 East 2nd St, Brooklyn, NY 11223

GENERAL COMMENTS	
The project is not a Capital Improvement project as per directions from ownership.	
All work to be performed normal work hours 7:00 am to 4:00 pm unless otherwise noted.	
The work week is considered to be a 5 day work week (Monday - Friday) unless otherwise noted. Weekend work as needed to maintain the substantial completion date is included at no additional cost.	
All Permits & Building Department Filing fees only pertaining to GC permits are included.	
Payment and performance Bonds, if required, will be calculated at a variable rate by the surety company and is excluded.	
JAT's construction schedule is predicated upon approvals of submittals, shop drawings, and samples.	
JAT is not responsible for schedule impacts caused by Force Majeure and is entitled to an extension of time.	
All official change orders submitted, are to be reviewed/approved/negotiated/decided within 5 business days of submission to Ownership. JAT is not responsible for delays caused by delayed approval/negotiation of change orders.	
Initial Survey is included.	
Owner to supply all the wall bases.	
Owner to supply all the window & door casings.	
Owner to supply all the tray ceiling wood panels.	
Owner to supply all the crown moldings.	
Owner to supply all the interior & exterior doors.	
Owner to supply all the windows.	
Owner to supply all the bath vanities.	
Owner to supply all the plumbing & light fixtures.	
Owner to supply all the bath accessories.	
Owner to supply all the wall & floor tile finishes.	
Owner to supply all the kitchen cabinets & countertops.	
Owner to supply all the glass doors & shower enclosures.	
NOTES & QUALIFICATIONS	
Architectural Drawings - Warren Meister Architects - bid set dated 8/1/2025 is included.	
SOE Drawings Dated 7-25-2025 is included.	
Foundation Drawings Dated 7-25-2025 is included.	
Structural Drawings Dated 7-25-2025 is included.	

EXHIBIT - A

MEP Drawings by Advanced Prof Engineering included.
DETAILED SCOPE OF WORK
<i>Underpinning, Shoring, Piles & Foundation</i>
Furnish & Install all the underpinning as per SE-200, SE-201 & SE-202. Sequence of bays to be followed as per procedure provided.
Furnish & Install all the lagging, shims & drypack as per drawings.
Furnish & Install 54 soldier piles to the depth of 20'.
Furnish & Install approximately 200 LF of welded waler system including all the shims, stiffeners &/or waler seats as per drawings.
Furnish & Install all the corner & lateral braces.
Furnish & Install all the heel blocks for rakers & steel plates for each block.
Disposal & trucking of clean soil included.
Backfill upto existing sidewalk grade.
Furnish & Install of footings & foundation walls.
Furnish & Install 6" SOG at foundation level including gravel layer under concrete.
Furnish & Install roll-on waterproofing on foundation walls exterior surface.
Furnish & Install vapor barriers under slabs on grade & wall footings.
Structural
Furnish & Install all structural steel columns & beams as per drawings.
Furnish & Instal all structural floor & roof framing as per drawings.
Furnish & Install box beams as per drawings.
Furnish & Install shearwalls & bracing & load bearing walls.
Furnish & Install lintel beams.
Furnish & Install overbuilt roof.
Furnish & Install floor sheathing.
Façade & Roofing
Furnish & Install all exterior denseglass sheathing & OSB sheathing as per drawings.
Furnish & Install all insulation & waterproofing as per drawings.
Furnish & Install all the brick accessories including clips, ties etc. as per drawings.
Furnish & Install all the brick veneer as per drawings & design.
Trade contractor to do a brick mockup on site for architect & ownership approval before proceeding with the brickwork install.
Furnish & Install all the limestone caps, casings, surrounds, pilasters & portals as per design & drawings.
Trade contractor to submit samples for all the limestone & brick for architect & ownership approval.
Furnish & Install all exterior decorative metal railings.
Furnish & Install the stucco veneer assembly as indicated on the drawings.

EXHIBIT - A

Furnish & Install all the Azek fascia, trims, sills, pilasters & soffits as indicated on the drawings.
Trade contractor to confirm shapes & profiles of all the Azek products with the architect & owner.
Furnish & Install EPDM roofing as per drawings.
Furnish & Install Slate roofing as per drawings.
Furnish & Install all the copper gutters & leaders as per drawings.
Drywall & Carpentry
Furnish and install Drywall & Rough Carpentry work per drawings in coordination with all other trades. Scope of work includes the following:
Provide dedicated manpower for safety installation and its maintenance.
Gypsum drywall for partitions, ceilings, furring, soffits, facias where indicated on drawings.
All blocking needed for millwork & furniture install.
Metal supports for all drywall construction.
Concealed metal reinforcing and blocking for bar, cabinets, toilet accessories, light fixtures, & all areas indicated on the drawings.
Taping and finishing of drywall surfaces. Skim coating for wallpapered surfaces.
Firestopping.
Column enclosure.
All materials used in drywall work are to form an assembly as per USG and MEA requirements. There may be areas within the drawings where ½" thick GWB is indicated (ceilings). However, this contractor shall include the use of 5/8" GWB throughout other areas or as noted on the wall construction details.
Gypsum board surfaces are to receive accessories as required, J-runners, furring channels, beads, moldings, etc.
Wall finishes included as per design drawings. Finishes to be supplied by owner & installed by GC.
Level 3 finish U.O.N.
Walls receiving ceramic tile finish are to receive one (1) coat of Latic rete wall joint compound with tape. Use Dura bond at green board, at durock walls tape with mesh and thin set.
Taping finish - all gypsum board shall be finished by the application of three (3) coats of appropriate material to the joints and seams.
Contractor does not include miscellaneous jogs, changes to chase walls and modified stud sizes to accommodate HVAC as there are no drawings available.
The chasing or notching of insulation and furring to accommodate conduit, pipes, BX or electrical boxes at walls or other areas where insulation is to be placed is included.
Includes the tacking of studs top and bottom with two screws, front and back.
Includes layout and cutting of GWB enclosure around sheet metal kitchen and other exhaust risers for installation of fire dampers, boots, grilles and registers etc.
Contractor shall enclose all sprinkler pipes with soffits as shown on drawings.
Include all studs, tracks, caulking, grounds, bracing and channel stiffening of partitions. Work shall conform, at a minimum, to the U.S. Gypsum Drywall Handbook and New York City Building Code for new construction, whether called for in the documents or not. Include at no additional cost, all shimming that may be needed for a proper installation where gypsum board is furred to masonry or concrete substrates. Provide diagonal bracing door head where required.

EXHIBIT - A

Include all bridging or other framing around pipes, beams, ducts, etc. Fastening partition framing to ductwork, pipe hangers, pipe rests, etc. shall not be allowed under any circumstances. If this contractor does fasten to any portion of a mechanical, electrical, plumbing or sprinkler system; the costs to remove, repair and/or replace same shall be their responsibility.
Include all sheetrock ceilings, soffits and fascia's indicated on either the finish schedule or the drawings, complete with supports. Construction of ceilings is to be coordinated with mechanical contractors for proper location of openings. Sheetrock suspended ceilings shall be installed in compliance with the N.Y.C. Building Code for new construction.
Includes the installation of back dining double door, frame, and hardware.
Door & Hardware
Trade contractor to install all the interior & exterior doors & hardware supplied by the owner & as per design.
Trade contractor is responsible for all the field measurements & rough openings to match the door & frames order.
Tiles & Stone
Trade contractor to provide all required labor & equipment and services necessary to complete full scope of work mentioned here, including but not limited to all types of grouting, sealants, waterproofing membrane, and accessories, as per drawings and specifications.
All tiles, stone & saddles to be supplied by the owner & installed by GC as per design drawings & specs.
Flooring
Install flooring as per drawings & specs.
All floors installed to be level & smooth.
Millwork
All millwork & woodwork to be supplied by the owner.
All kitchen cabinets, vanities & countertops & other misc. millwork to be supplied by the owner.
All bathroom vanities to be installed by the general contractor.
All labor to include standard 1 year warranty.
Elevator
Furnish & Install a 4-stop residential elevator as per specs.
All testing, balancing & DOB inspections included.
Plumbing & Sprinkler
Trade contractor includes all the new water, sewer & sanitary rough in work.
Trade contractor includes all roughing and hook-ups for kitchen appliances provided by owner.
Trade contractor includes supply & install of floor & roof drains.
Trade contractor includes the supply & install of all valves.
Tie into existing services & new services install included.
Trade contractor includes the install of all the sprinkler work including the piping, heads & testing & inspections.
Plumbing Fixtures & Bathroom Accessories

EXHIBIT - A

Trade contractor shall receive, check, count, sign for, uncrate, distribute and install all plumbing fixtures furnished by owner.
Trade contractor shall receive, check, count, sign for, uncrate, distribute and install all toilet accessories furnished by owner.
HVAC
Furnish & install of all the HVAC ductwork, indoor & outdoor equipment, duct insulation, thermostats, registers, diffusers & testing & balancing of the system is included.
Furnish & install of all the condensate piping & drains is included.
Electrical
Furnish and install all new receptacles.
Furnish and install all new GFCI outlet.
To install all new lights as supplied by the owner.
Furnish and install power for all lights fixtures.
Install all new E.M lights as supplied by the owner.
Furnish and install power for all switches and sensor.
Furnish and install new breakers as identified.
Furnish and install power for all appliances, plumbing & HVAC equipment.
Furnish & Install all the smoke detectors & alarms.

EXHIBIT – B

EXHIBIT - B
2044 East 2nd St, Brooklyn, NY- Schedule of Values

2044 EAST 2nd ST, BROOKLYN, NY- SCHEDULE OF VALUES		
ITEM NO.	DESCRIPTION OF WORK	SCHEDULED VALUE
01000	Demolition	\$ 51,456.00
02000	Piles and Shoring	\$ 300,000.00
03000	Excavation and Backfill	\$ 150,000.00
04000	Concrete foundation	\$ 210,000.00
05000	Concrete Slab	\$ 65,000.00
06000	Concrete Sidewalk & Driveway	\$ 39,043.00
07000	Walkway at Front & Around the House & Pavers for Porch	\$ 47,400.00
08000	Exterior façade	\$ 429,000.00
09000	Steel framing interior and exterior	\$ 383,900.00
10000	New floor & roof metal joists	\$ 124,850.00
11000	Plywood sub floor	\$ 61,600.00
12000	Blocking	\$ 21,500.00
13000	Exterior Decorative Railings	\$ 18,750.00
14000	Wall base Install	\$ 19,375.00
15000	Window casings Install	\$ 12,750.00
16000	Door casings Install	\$ 19,700.00
17000	Install tray ceiling wood panels	\$ 12,000.00
18000	Install crown moldings	\$ 16,000.00
19000	Roofing	\$ 225,000.00
20000	Insulation	\$ 86,000.00
21000	Interior Doors Install	\$ 47,500.00
23000	Exterior Doors Install	\$ 9,500.00
24000	Windows Install	\$ 39,000.00
25000	Gypsum Board Assemblies	\$ 82,900.00
27000	Taping	\$ 59,000.00
28000	Finish Floor Install	\$ 98,000.00
29000	Ceramic tile installation for walls	\$ 60,000.00
30000	Bathroom Accessories Install	\$ 9,500.00
31000	Decks and Porches Install	\$ 30,000.00
32000	Elevator (4 Stops)	\$ 95,000.00

EXHIBIT - B

2044 East 2nd St, Brooklyn, NY- Schedule of Values

33000	Plumbing	\$	186,350.00
34000	Water & Sewer	\$	55,000.00
35000	HVAC	\$	198,000.00
36000	Electrical	\$	197,400.00
TOTALS		\$	3,460,474.00

EXHIBIT – C

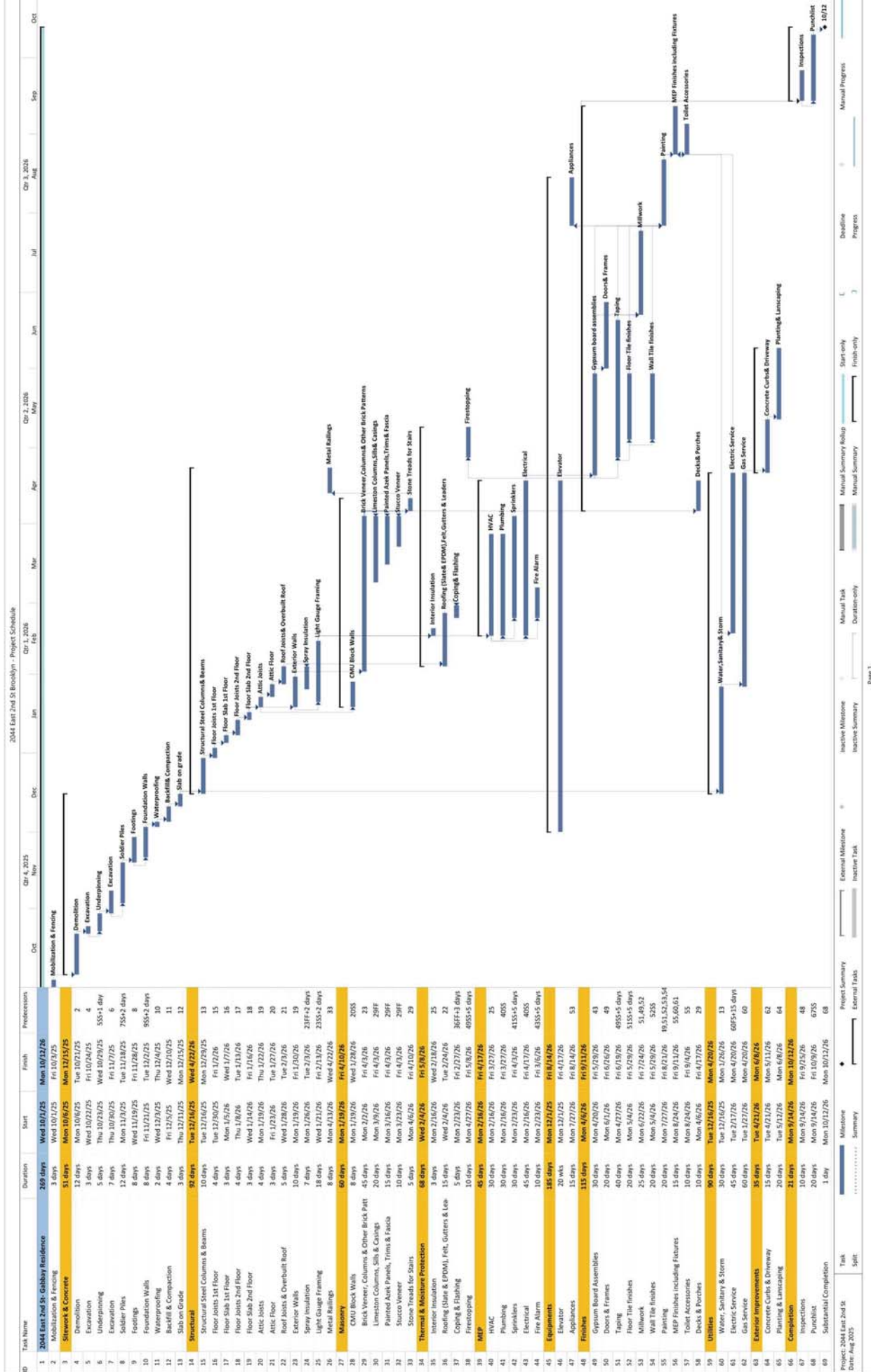


EXHIBIT - D



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

9/11/2025

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Vavas Insurance & Financial Services 8423 Third Avenue Brooklyn, NY 11209	CONTACT NAME: Ruth Marino PHONE (A/C, No, Ext): (718) 833-5151 FAX (A/C, No): (718) 833-2834 E-MAIL ADDRESS: ruth.marino@vavasinsurance.com	
	INSURER(S) AFFORDING COVERAGE	
INSURED JAT Construction Group Inc. 2266 McDonald Avenue Brooklyn, NY 11223	INSURER A: Allied World Surplus Lines Insurance Company 24319	
	INSURER B: Progressive Casualty Ins Co 24260	
	INSURER C: The State Insurance Fund 524126	
	INSURER D: Hartford Life and Accident Ins 70815	
	INSURER E:	
INSURER F:		

COVERAGES

CERTIFICATE NUMBER: E073

REVISION NUMBER: 2

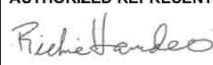
THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	COMMERCIAL GENERAL LIABILITY CLAIMS-MADE ☒ OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: POLICY ☒ PRO-JECT ☐ LOC OTHER: \$10K BI Deductible	X		5061100800	1/19/2025	1/19/2026	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 50,000 MED EXP (Any one person) \$ 5,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMP/OP AGG \$ 2,000,000 AnnualPrjGA \$ 5,000,000
B	AUTOMOBILE LIABILITY ANY AUTO OWNED AUTOS ONLY ☒ SCHEDULED AUTOS HIRED AUTOS ONLY ☒ NON-OWNED AUTOS ONLY			968893063	4/20/2025	4/20/2026	COMBINED SINGLE LIMIT (Ea accident) \$ 1,000,000 BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$
A	UMBRELLA LIAB ☒ OCCUR EXCESS LIAB ☐ CLAIMS-MADE DED ☒ RETENTION \$ 0	X		5062052800	1/19/2025	1/19/2026	EACH OCCURRENCE \$ 5,000,000 AGGREGATE \$ 5,000,000 \$
C	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) ☐ If yes, describe under DESCRIPTION OF OPERATIONS below		Y/N N/A	K 25834268	1/10/2025	1/10/2026	☒ PER STATUTE ☐ OTH-ER E.L. EACH ACCIDENT \$ 1,000,000 E.L. DISEASE - EA EMPLOYEE \$ 1,000,000 E.L. DISEASE - POLICY LIMIT \$ 1,000,000
D	Disability			LNY908295	1/1/2025	12/31/2025	Statutory Limits

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)
 Job Location: 2044 East 2nd Street, Brooklyn, NY 11223.
 Joseph Gabbay & 402 AVENUE T LLC are included as an additional insured when required by written contract or agreement.

CERTIFICATE HOLDER

CANCELLATION

Joseph Gabbay & 402 AVENUE T LLC 2044 East 2nd Street Brooklyn, NY 11223	SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.
	AUTHORIZED REPRESENTATIVE 



PO Box 66699, Albany, NY 12206

| nysif.com

CERTIFICATE OF WORKERS' COMPENSATION INSURANCE

***** 921567416

VAVAS INSURANCE AGENCY, LLC
8423 3RD AVENUE
BROOKLYN NY 11209



SCAN TO VALIDATE
AND SUBSCRIBE

POLICYHOLDER JAT CONSTRUCTION GROUP INC 2266 MCDONALD AVE BROOKLYN NY 11223		CERTIFICATE HOLDER JOSEPH GABBAY & 402 AVENUE T LLC 2044 EAST 2ND STREET BROOKLYN NY 11223	
POLICY NUMBER K2583 426-8	CERTIFICATE NUMBER 767813	POLICY PERIOD 01/10/2025 TO 01/10/2026	DATE 9/11/2025

THIS IS TO CERTIFY THAT THE POLICYHOLDER NAMED ABOVE IS INSURED WITH THE NEW YORK STATE INSURANCE FUND UNDER POLICY NO. 2583 426-8, COVERING THE ENTIRE OBLIGATION OF THIS POLICYHOLDER FOR WORKERS' COMPENSATION UNDER THE NEW YORK WORKERS' COMPENSATION LAW WITH RESPECT TO ALL OPERATIONS IN THE STATE OF NEW YORK, EXCEPT AS INDICATED BELOW, AND, WITH RESPECT TO OPERATIONS OUTSIDE OF NEW YORK, TO THE POLICYHOLDER'S REGULAR NEW YORK STATE EMPLOYEES ONLY.

IF YOU WISH TO RECEIVE NOTIFICATIONS REGARDING SAID POLICY, INCLUDING ANY NOTIFICATION OF CANCELLATIONS, OR TO VALIDATE THIS CERTIFICATE, VISIT OUR WEBSITE AT [HTTPS://WWW.NYSIF.COM/CERT/CERTVAL.ASP](https://www.nysif.com/cert/certval.asp). THE NEW YORK STATE INSURANCE FUND IS NOT LIABLE IN THE EVENT OF FAILURE TO GIVE SUCH NOTIFICATIONS.

THIS POLICY DOES NOT COVER CLAIMS OR SUITS THAT ARISE FROM BODILY INJURY SUFFERED BY THE OFFICERS OF THE INSURED CORPORATION.

PRESIDENT
JOHN LONGARDO
SECRETARY
LOREDANA LONGARDO
JAT CONSTRUCTION GROUP INC

THE POLICY INCLUDES A WAIVER OF SUBROGATION ENDORSEMENT UNDER WHICH NYSIF AGREES TO WAIVE ITS RIGHT OF SUBROGATION TO BRING AN ACTION AGAINST THE CERTIFICATE HOLDER TO RECOVER AMOUNTS WE PAID IN WORKERS' COMPENSATION AND/OR MEDICAL BENEFITS TO OR ON BEHALF OF AN EMPLOYEE OF OUR INSURED IN THE EVENT THAT, PRIOR TO THE DATE OF THE ACCIDENT, THE CERTIFICATE HOLDER HAS ENTERED INTO A WRITTEN CONTRACT WITH OUR INSURED THAT REQUIRES THAT SUCH RIGHT OF SUBROGATION BE WAIVED.

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS NOR INSURANCE COVERAGE UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICY.

NEW YORK STATE INSURANCE FUND

DIRECTOR, INSURANCE FUND UNDERWRITING

VALIDATION NUMBER: 269222109

EXHIBIT – E

UNCONDITIONAL WAIVER AND RELEASE ON PROGRESS PAYMENT

Project 2044 East 2nd St, Brooklyn, NY 11223

Job No. _____

On receipt by the signer of this document of a check from Joey Gabbay (*maker of check*) in the sum of \$ 0.00 payable to JAT Construction Group Inc (*payee or payees of check*) and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanic's lien right, any right arising from a payment bond, any common law payment bond right, any claim for payment, and any rights under any similar ordinance, rule, or statute related to claim or payment rights for persons in the signer's position that the signer has on the property of Joey Gabbay (*owner*) located at 2044 East 2nd St, Brooklyn, NY 11223 (*location*) to the following extent: _____ (*job description*).

This release covers a progress payment for all labor, services, equipment, or materials furnished to the property or to Joey Gabbay (*person with whom signer contracted*) as indicated in the attached statement(s) or progress payment request(s), except for unpaid retention, pending modifications and changes, or other items furnished.

Before any recipient of this document relies on this document, the recipient should verify evidence of payment to the signer.

The signer warrants that the signer has already paid or will use the funds received from this progress payment to promptly pay in full all of the signer's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or services provided for or to the above referenced project in regard to the attached statement(s) or progress payment request(s).

Date _____

(Company name)

By _____ (Signature)

(Title)

State of _____

County of _____

Sworn to and subscribed before me on the _____ day of _____, 20 __, by _____.

(seal)

(Notary's Signature)

Notary Public, State of _____

Exhibit 2 - Termination Notice

JOSEPH S SUTTON, ESQ.
(212) 290-1370

December 3, 2025

Re: NOTICE OF TERMINATION

Dear JAT Construction Group:

I represent 402 Avenue T LLC ("Owner"), the owner of the property located at 402 Avenue T, Brooklyn, New York, 11223 (the "Property"). I also represent Joseph Gabbay, which is the manager of Owner.

Reference is hereby made to that certain unsigned proposal contract by JAT Construction Group annexed hereto (the "Contract").

Please be advised that this letter shall serve as formal written notice that Owner hereby terminates the Contract, with the effective date of such termination to be **this Friday, December 5, 2025**.

The Owner and Mr. Gabbay requires that all of your materials and equipment must be removed from the Property by no later than 6:00pm EST on this Friday, December 5, 2025.

Sincerely,



Joseph S Sutton, Esq.

Exhibit 3 - September 4, 2025
payment records totaling \$277,290

NYSCEF DOC. NO. 13

JG ACQUISITIONS LLC-J

240 MADISON AVE FL 15
NEW YORK, NY 10016-2872

J.P.Morgan

J.P. MORGAN CHASE BANK, N.A.
1-2/210

RECEIVED NYSCEF: 03/20/2026

1029

9/4/2025

PAY TO THE
ORDER OF JAT Construction Group

\$ **138,645.00

One Hundred Thirty-Eight Thousand Six Hundred Forty-Five and 00/100*****

DOLLARS

JAT Construction Group



[Handwritten Signature]

AUTHORIZED SIGNATURE

MEMO

Joey Gabbay Construction 402 Ave T

⑈001029⑈ ⑈021000021⑈

514831117⑈

JG ACQUISITIONS LLC-J

JAT Construction Group

1029

9/4/2025

138,645.00

JP Morgan Chase Ch Joey Gabbay Construction 402 Ave T

138,645.00

JG ACQUISITIONS LLC-J

JAT Construction Group

1029

9/4/2025

138,645.00

JP Morgan Chase Ch Joey Gabbay Construction 402 Ave T

138,645.00

NYSCEF DOC. NO. 13

JG ACQUISITIONS LLC-J
240 MADISON AVE FL 15
NEW YORK, NY 10016-2872

J.P.Morgan

J.P. MORGAN CHASE BANK, N.A.
1-2/210

RECEIVED NYSCEF: 03/20/2026

9/4/2025

PAY TO THE
ORDER OF JAT Construction Group

\$ **138,645.00

~~One Hundred Thirty-Eight Thousand Six Hundred Forty-Five and 00/100~~ ***** DOLLARS

JAT Construction Group



MEMO

Joey Gabbay Construction 402 Ave T

⑈001030⑈ ⑆021000021⑆

5148311170

AUTHORIZED SIGNATURE

JG ACQUISITIONS LLC-J

JAT Construction Group

9/4/2025

1030

138,645.00

JP Morgan Chase Ch Joey Gabbay Construction 402 Ave T

138,645.00

JG ACQUISITIONS LLC-J

JAT Construction Group

9/4/2025

1030

138,645.00

JP Morgan Chase Ch Joey Gabbay Construction 402 Ave T

138,645.00

Exhibit 4 - November 3, 2025 \$60,000 payment record



Sign out



You've scheduled this wire.

Please print and save this page for your records.

Account details

Wire to	JAT Construction Group Inc (...0427)
Wire from	JG ACQUISITIONS LLC- (...1117)
Wire status	Needs approval
Transaction number	12040320440

Sender information

Wire date	Nov 3, 2025
Wire amount	\$60,000.00 USD (U.S. Dollars)
Outgoing wire transfer fee	See analysis statement
Total	\$60,000.00 USD (U.S. Dollars)

Your account activity will show separate charges for wire amount and wire transfer fee.

Additional information

Additional routing info	None
Message to recipient	Steel
Memo	None

Exhibit 5 - Application and Certificate for Payment

APPLICATION AND CERTIFICATE FOR PAYMENT - AIA G702

PAGE 1 OF 2 PAGES

TO (OWNER): Joey Gabbay PROJECT: Gabbay Residence APPLICATION NO: 2 Distribution to: _____
402 Ave T LLC 2044 East 2nd St Brooklyn, NY 11223 ☒ OWNER
PERIOD TO: 9/30/2025 ☐ ARCHITECT

FROM (GC): JAT Construction Group VIA (ARCHITECT): Warren Meister Arch PROJECT NO: _____ ☐ CONTRACTOR

CONTRACT FOR: 2044 East 2nd St, Brooklyn, NY 11223 CONTRACT DATE: 8/29/2025

CONTRACTOR'S APPLICATION FOR PAYMENT

Application is made for Payment, as shown below, in connection with the Contract.
Continuation Sheet is attached.

CHANGE ORDER SUMMARY	ADDITIONS	DEDUCTIONS
Change Orders approved in previous months by Owner		
TOTAL		
Approved this Month		
Number		
Date Approved		
TOTALS	\$0.00	\$0.00
Net change by Change Orders		

The undersigned Contractor certifies that to the best of the Contractor's knowledge, information and belief the Work covered by this Application for Payment has been completed in accordance with the Contract Documents, that all amounts have been paid by the Contractor for Work for which previous Certificates for Payments were issued and payments received from the Owner, and that current payment shown herein is now due.

CONTRACTOR: JAT Construction Group Inc

1. ORIGINAL CONTRACT SUM \$ 3,460,474.00
2. Net change by Change Orders \$ 0.00
3. CONTRACT SUM TO DATE (Line 1 + 2) \$ 3,460,474.00
4. TOTAL COMPLETED & STORED TO DATE \$ 504,147.40
(Column G on Continuation Sheet)
5. RETAINAGE
a. VAR % of Completed Work
(Col. D & E on Continuation Sheet) \$ 50,414.74
b. % of Stored Material \$ 0.00
(Column F on Continuation Sheet)
TOTAL RETAINAGE (Line 5a+5b or Column J on Continuation Sheet) \$ 50,414.74
6. TOTAL EARNED LESS RETAINAGE \$ 453,732.66
(Line 4 less Line 5 Total)
7. LESS PREVIOUS CERTIFICATES FOR PAYMENT \$ 277,290.00
(Line 6 from prior Certificate)
8. CURRENT PAYMENT DUE \$ 176,442.66
9. BALANCE TO FINISH, PLUS RETAINAGE (Line 3 less Line 6) \$ 3,006,741.34

State of: New York County of: Kings
Subscribed and sworn to before me this 2025 day of _____
Notary Public: _____
My Commission expires: _____

ARCHITECT'S CERTIFICATE FOR PAYMENT

In accordance with the Contract Documents, based on on-site observations and the data comprising the above application, the Architect certifies to the Owner that to the best of the Architect's knowledge, information and belief the Work has progressed as indicated, the quality of the Work is in accordance with the Contract Documents, and the Contractor is entitled to payment of the AMOUNT CERTIFIED.

AMOUNT CERTIFIED \$ _____
(Attach explanation if amount certified differs from the amount applied for.)
ARCHITECT: _____
By: _____ Date: _____
This Certificate is not negotiable. THE AMOUNT CERTIFIED is payable only to the Contractor named herein. Issuance, payment and acceptance of payment are without prejudice to any rights of the Owner or Contractor under this Contract.

AIA - G703

PAGE 2 OF 2 PAGES

APPLICATION AND CERTIFICATE FOR PAYMENT, containing the Contractor's signed Certification is attached.
Use Column J on Contracts where variable retainage for line items may apply.

APPLICATION NO.:
2
09/29/25
APPLICATION DATE:
PERIOD TO:
09/30/25
ARCHITECT'S NO.:

A ITEM NO.	B DESCRIPTION OF WORK	D WORK COMPLETED		E THIS PERIOD	F MATERIALS PRESENTLY AND STORED (NOT IN D OR E)	G TOTAL COMPLETED & STORED TO DATE (D+E+F)	H % (G/C)	I BALANCE TO FINISH (C - G)	J RETAINAGE 10%
		SCHEDULED VALUE	PREVIOUS APPLICATION (D + E)						
00000	Mobilization	\$ 346,047.40	\$ 150,000.00	\$ 196,047.40		\$ 346,047.40	100.00%	\$ -	\$ 34,604.74
01000	Demolition	\$ 46,310.40	\$ 23,100.00			\$ 23,100.00	49.88%	\$ 23,210.40	\$ 2,310.00
02000	Piles and Shoring	\$ 270,000.00	\$ 135,000.00			\$ 135,000.00	50.00%	\$ 135,000.00	\$ 13,500.00
03000	Excavation and Backfill	\$ 135,000.00				\$ -	0.00%	\$ 135,000.00	\$ -
04000	Concrete foundation	\$ 189,000.00				\$ -	0.00%	\$ 189,000.00	\$ -
05000	Concrete Slab	\$ 58,500.00				\$ -	0.00%	\$ 58,500.00	\$ -
06000	Concrete Sidewalk & Driveway	\$ 35,138.70				\$ -	0.00%	\$ 35,138.70	\$ -
07000	Walkway at Front & Around the House & Pavers for Porch	\$ 42,660.00				\$ -	0.00%	\$ 42,660.00	\$ -
08000	Exterior façade	\$ 386,100.00				\$ -	0.00%	\$ 386,100.00	\$ -
09000	Steel framing interior and exterior	\$ 345,510.00				\$ -	0.00%	\$ 345,510.00	\$ -
10000	New floor & roof metal joists @ 12" & 16" O.C.	\$ 112,365.00				\$ -	0.00%	\$ 112,365.00	\$ -
11000	Plywood sub floor	\$ 55,440.00				\$ -	0.00%	\$ 55,440.00	\$ -
12000	Blocking	\$ 19,350.00				\$ -	0.00%	\$ 19,350.00	\$ -
13000	Exterior Decorative Railings	\$ 16,875.00				\$ -	0.00%	\$ 16,875.00	\$ -
14000	Wall base Install	\$ 17,437.50				\$ -	0.00%	\$ 17,437.50	\$ -
15000	Window casings Install	\$ 11,475.00				\$ -	0.00%	\$ 11,475.00	\$ -
16000	Door casings Install	\$ 17,730.00				\$ -	0.00%	\$ 17,730.00	\$ -
17000	Install tray ceiling wood panels	\$ 10,800.00				\$ -	0.00%	\$ 10,800.00	\$ -
18000	Install crown moldings	\$ 14,400.00				\$ -	0.00%	\$ 14,400.00	\$ -
19000	Roofing	\$ 202,500.00				\$ -	0.00%	\$ 202,500.00	\$ -
20000	Insulation	\$ 77,400.00				\$ -	0.00%	\$ 77,400.00	\$ -
21000	Interior Doors Install	\$ 42,750.00				\$ -	0.00%	\$ 42,750.00	\$ -
23000	Exterior Doors Install	\$ 8,550.00				\$ -	0.00%	\$ 8,550.00	\$ -
24000	Windows Install	\$ 35,100.00				\$ -	0.00%	\$ 35,100.00	\$ -
25000	Gypsum Board Assemblies	\$ 74,610.00				\$ -	0.00%	\$ 74,610.00	\$ -
27000	Taping	\$ 53,100.00				\$ -	0.00%	\$ 53,100.00	\$ -
28000	Finish Floor Install	\$ 88,200.00				\$ -	0.00%	\$ 88,200.00	\$ -
29000	Ceramic tile installation for walls	\$ 54,000.00				\$ -	0.00%	\$ 54,000.00	\$ -
30000	Bathroom Accessories Install	\$ 8,550.00				\$ -	0.00%	\$ 8,550.00	\$ -
31000	Decks and Porches Install	\$ 27,000.00				\$ -	0.00%	\$ 27,000.00	\$ -
32000	Elevator (4 Stops)	\$ 85,500.00				\$ -	0.00%	\$ 85,500.00	\$ -
33000	Plumbing	\$ 167,715.00				\$ -	0.00%	\$ 167,715.00	\$ -
34000	Water & Sewer	\$ 49,500.00				\$ -	0.00%	\$ 49,500.00	\$ -
35000	HVAC	\$ 178,200.00				\$ -	0.00%	\$ 178,200.00	\$ -
36000	Electrical	\$ 177,660.00				\$ -	0.00%	\$ 177,660.00	\$ -
	TOTALS	\$ 3,460,474.00	\$ 308,100.00	\$ 196,047.40	\$ -	\$ 504,147.40	14.57%	\$ 2,956,326.60	\$ 50,414.74

Exhibit 6 - Marine Bulkheading lien

NOTICE UNDER MECHANIC'S LIEN LAW

To the Clerk of the County of **Kings** and all others whom it may concern:

PLEASE TAKE NOTICE that **Marine Bulkheading, Inc.**, as lienor has and claims a lien on the real property hereinafter described as follows:

1) The name and residence of the lienor is **Marine Bulkheading, Inc.**, being a corporation whose business address is at 3512 Bay Court, Seaford, NY 11783.

(1a) The name and address of lienor's attorney is **John N. Cuomo, 11 Fern Dr. Commack, NY 11725.**

(2) The owners of the real property are **402 AVENUE T LLC** the interest of the owners as far as known to the lienor is: owners in fee.

(3) The name of the party by whom the lienor was employed is: **JAT CONSTRUCTION GROUP**

The name of the party to whom the lienor furnished or is to furnish materials or for whom the lienor performed or is to perform professional services is: **JAT CONSTRUCTION GROUP and 402 AVENUE T LLC.**

The name of the party with whom the contract was made is: **JAT CONSTRUCTION GROUP.**

The name of the party for whom professional services were rendered is: **JAT CONSTRUCTION GROUP and 402 AVENUE T LLC.**

**Kings
County**

Sec:

**Block:
7104**

Lot:

458

(4) The labor performed and the materials furnished: **Supply and Install associated materials for building Foundation, Superstructure and foundation waterproofing**

The materials actually manufactured for but not delivered to the real property are **None.**

The agreed price and value of the labor performed and the materials furnished is **\$854,700.00**

The agreed price and value of the materials actually manufactured for but not delivered to the real property is **None.**

The agreed fee for professional services is:

Total agreed price and value \$854,700.00

(5) The amount unpaid to the lienor for said labor performed and materials furnished is **\$361,080.00**

The amount unpaid to lienor for materials actually manufactured for but not delivered to the real property is **None.**

Total amount unpaid \$361,080.00

The total amount claimed for which this lien is filed is **\$361,080.00**

(6) The time when the first item of work was performed and materials were furnished was on or about **October 1, 2025.**

The time when the last item of work was performed and materials were furnished was: **December 4, 2025.**

(7) The property subject to the lien is situated in the **County of Kings, City and State of New York** known as and by the **Kings County Tax Map ID Block 7104, Lot 458** known as and by **402 Avenue T, Brooklyn, New York 11231 a/k/a 2044 East 2nd Street, Brooklyn, NY 11223.**

That said labor and materials were performed and furnished for and used, in the improvement of the real property herein before described. That 8 months (4 months if a single family dwelling) have not elapsed dating from the last item of work performed, or from the last items of materials furnished, or since the completion of the contract, or since the final performance of the work, or since the final furnishing of the materials for which this lien is claimed.

MARINE BULKHEADING, INC.

Dated: December 16, 2025

By:

Michael DeSousa, Treasurer

Exhibit 7 - Urban Industrial Group lien

NOTICE UNDER MECHANIC'S LIEN LAW

To the Clerk of the County of Kings and all others whom it may concern:

Please Take Notice, that Urban Industrial Group LLC

as lienor(s) have and claim a lien on the real property hereinafter described as follows:

- (1) The names and residences of the lienor(s) are Urban Industrial Group LLC
707 Sharrotts Road
Staten Island, NY 10309

being a Corporation Duly organized and existing under and by virtue of the laws of the State of New York

- (2) The owner of the real property is 402 Avenue T LLC
and the interest of the owner as far as known to the lienor(s) is Fee Simple

- (3) The name of the party by whom the lienor(s) was (were) employed is:
JAT Construction Group Inc.

The name of the party to whom the lienor(s) furnished or is (are) to furnish materials or for whom
the lienor(s) performed or is (are) to perform professional services is:
JAT Construction Group Inc.

- (4) The labor performed was Demolition Services

Block: The material furnished N/A
7104

Lot:
458 The materials actually manufactured for but not delivered to the real property are N/A

The agreed price and value of the labor performed is \$109,300.00

The agreed price and value of the material furnished is

The agreed price and value of the material actually mfd. for but not delivered to the real prop. is

The agreed fee for professional services is

Total agreed price and value \$109,300.00

- (5) The amount unpaid to the lienor(s) for said labor performed is \$109,300.00

- The amount unpaid to the lienor(s) for said material furnished is

The amount unpaid to lienor(s) for material actually mfd. for but not delivered to the real prop. is

Total amount unpaid \$109,300.00

The total amount claimed for which this lien is filed is \$109,300.00

- (6) The time when the first item of work was performed was 9/20/2025

The time when the first item of material was furnished was N/A

The time when the last item of work was performed was 10/24/2025

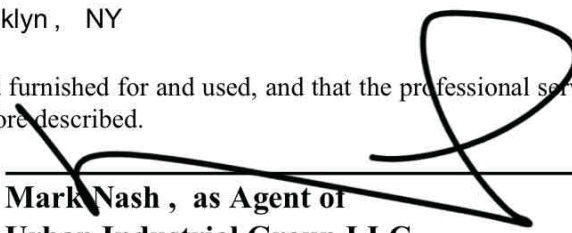
The time when the last item of material was furnished was N/A

- (7) The property subject to the lien is situated in Brooklyn, County of Kings, State of New York

Known as: 2044 East 2nd Street
Brooklyn, NY

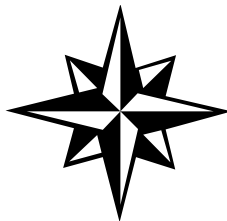
That said labor and materials were performed and furnished for and used, and that the professional services rendered were used, in the improvement of the real property hereinbefore described.

Dated February 20, 2026


Mark Nash, as Agent of
Urban Industrial Group LLC
For Filing Purposes Only

PHONE (516) 785-7557

FAX (516) 785-2280



MARINE BULKHEADING INC.

3512 BAY COURT
SEAFORD, NY. 11783

**Pile Driving ECP Helical / Wood / Steel / Pipe
Mini Piles / Drilled Casing / Shoring / Bulkheading / Piers**

September 25, 2025

JAT Construction Group
2266 McDonald Avenue
Brooklyn, NY 11223

Re: Invoice #1 for SOE / Foundation @ 2044 East 2nd Street Brooklyn, NY 11223

-
- \$ 121,500.00 = Amount due for mobilization and material deposit

UNCONDITIONAL WAIVER AND RELEASE ON PROGRESS PAYMENT

Project- 2044 East 2nd St, Brooklyn, NY 11223

Job No. _____

On receipt by the signer of this document of a check from JAT Construction Group (maker of check) in the sum of \$ 121,500.00 payable to Marine Bulkheading Inc (payee or payees of check) and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanic's lien right, any right arising from a payment bond, any common law payment bond right, any claim for payment, and any rights under any similar ordinance, rule, or statute related to claim or payment rights for persons in the signer's position that the signer has on the property of Joey Gabbay (owner) located at 2044 East 2nd St., Brooklyn, NY 11223 (location) to the following extent: _____ (job description).

This release covers a progress payment for all labor, services, equipment, or materials furnished to the property or to Joey Gabbay (person with whom signer contracted) as indicated in the attached statement(s) or progress payment request(s), except for unpaid retention, pending modifications and changes, or other items furnished up to period end date only of 9/30/25.

Before any recipient of this document relies on this document, the recipient should verify evidence of payment to the signer.

The signer warrants that the signer has already paid or will use the funds received from this progress payment to promptly pay in full all of the signer's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or services provided for or to the above referenced project in regard to the attached statement(s) or progress payment request(s) up to period end date only of 9/30/25.

Date 9/25/25MARINE BULKHEADING INC (Company name)By [Signature] (Signature)CFO (Title)State of New YorkCounty of NassauSworn to and subscribed before me on the 25 day of September, 2025, by _____.

(seal)

BRENDA LOMBARDO
Notary Public, State of New York
No. 01LO5025406
Qualified in Suffolk County
Commission Expires March 28, 2026

[Signature]
(Notary's Signature)
Notary Public, State of NY